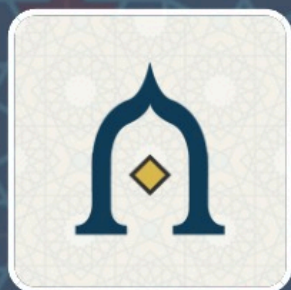


The Muslim Family



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Sub Title:

This text provides a holistic approach and analysis of the edifice of family within Islam. Using Quranic text and Islamic tradition, the text first highlights the status of women, then it analyses the significance of building a family, and the rights and responsibilities which spouses, parents, and children hold upon each other within the religion.

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Presentation

The Marriage Covenant In Islam

When a man wants to marry a woman let him say: I abide by the Covenant taken by Allah: 'You will be retained in honour or released in kindness.' Imam Al-Sadiq ('a)

Praise be to Allah, Who creates and disposes, and Who measures and guides. Blessings and peace be upon the one whom Allah has sent as a mercy to the people¹. O Allah! send Your blessings upon Prophet Muhammad, and on his pure progeny and on the pious ones among his companions.

During the long period of the age of deviation, suppression and humiliation, the oppressive enemies of Islam spared no arrow in their quiver against the Clear Religion, to weaken the adherence of the sons of Islam to their faith, and to pave the way for intoxicating their thoughts with modern, materialistic, ignorant thinking.

Yet despite all those artfully planned attempts, treacherously devised efforts, and deceptively designed aggressive and destructive methods, the great Islamic thought stands majestically firm today, spurning away the outcome of the Western and Eastern materialistic cultures, and delivering a destructive blow to modern ignorant concepts.

The Youths of the Islamic Ummah, having denied the materialistic monsters any positive foot-hold by

their firm belief in Islamic values, are now preparing with all their might, not only to uproot the political, military and economic strategies defending the interests of the disbelievers transgressing our lands, but also to raise the banner of 'There is no God save Allah, Muhammad is the Messenger of Allah,' above every piece and corner of our dissected Islamic land, to unite Muslims and to eagerly carry the Islamic call to the whole world.

'Woman' was one of the means of imperialistic intrigue and wantonness, and a target of the poisonous pens which appeared simultaneously, encouraged by the espionage offices and the dens of sabotage in our Islamic countries, to ruin our pious family and virtuous society.

But today, the Muslim woman proudly stands side by side with the Muslim man, refusing to lead a loose and ignorant life, detesting dissoluteness, and denouncing immorality. She carries the scent of faith and the purity of chastity. She explores the fields of honour and knowledge, and rushes into the arena of purposeful work, so as to continue a free and happy life under the shelter of the great Islamic message.

Al-Balagh Foundation presents this study about "The Muslim Family" to its dear readers and asks Allah to bring the stratagem of the disbelievers to naught, and to support us with His wisdom and guidance so that Islam and peace may prevail all around.

Al-Balagh Foundation

[1.](#) Reference is to the Prophet Muhammad (S) whom the holy Qur'an describes as:

وَمَا أَرْسَلْنَاكَ إِلَّا رَحْمَةً لِّلْعَالَمِينَ

"We have not sent you but as a mercy to the world" (21: 107).

Women Under Non-Islamic Civilizations

Humanity's affliction and the cause of its tragedy under the modern materialistic culture stems from the crisis of thought, the ideological loss, together with confused concepts and ideas, which impose weird attitudes, limiting out look toward things around and rigidly defining fellowmen and society in an absurd manner.

If a researcher or an analyst casts a passing glance at the nature and appearance of the social, economic and psychological conditions in the contemporary ignorant materialistic culture, he will immediately recognize the tragic pictures of human sufferings, injustice, suppression, loss and deprivation in this complex civilization.

By tracing the origin of these social, psychological and intellectual catastrophes to their historical roots,

one may realize that these are strongly linked to the superstitious attitudes of the history of ignorance on this planet. They draw a sketch whose lines passing across the dimension of the times of ignorance and cutting through the vacuum of the contemporary period, form the biggest circle of mankind's cultural confusion and loss, both mentally and spiritually. They illustrate a disfigured image whose inborn nature has been polluted, and whose life has deviated from the law of human nature and the path of righteousness and justice.

The figure emerges of a confused personality, devoid of any humanistic values and concepts and unable to cultivate or express its true identity and its sound innate self.

From these concepts of distorted values and relations, stemming from the depths of the history of ignorance and pouring into the basin of the modern materialistic culture, the deviated theories about man, woman, sex, family life, social relations have been formed.

The history of these concepts, values and relations presents a tragic picture of humanity and its brutal behaviour that offends the very law of life, contrary to man's innate nature, miserably degrading the woman to a position which does not suit her natural self and upsets the social balance and the equation of man–woman relations.

Woman, thus, is greatly suffering from the misery of the modern society, being maltreated by man and inhumane social laws. This has been ever so since the primitive times up to the present modern materialistic civilization. These man–made laws and cultures have always viewed woman as a commercial commodity in life; a means of pleasure, a prisoner who has no freedom and a creature who enjoys no human merits that have been bestowed on man. Actually, she is considered a source of evil in this world, a cause of sin, and a filth from which one needs to purify oneself.

Historically speaking, woman has been exploited. In the past civilizations like that of the Greeks and the Romans, she was deprived of her civil rights and was subjected to maltreatment by her father, brothers and her husband who only regarded her as a heavy burden, a means of pleasure or a slave to toil.

According to Jewish concepts, deviated from the original laws of Moses, she was looked upon as a cause of sin. The myth goes even further, saying it was the woman who caused Adam to sin and be driven out of paradise. The Torah – the fabricated Torah of the Jews– says: “Woman is more bitter than death” and “the good man before God should avoid her”¹

Under this Jewish misinterpretation of the divine religion of Moses, woman is regarded as an inheritable property. The Old Testament says:

“And in all the land were no women found so fair as the daughters of Job and their father gave them inheritance among their brethren” Job (41/15)

The Jewish law further states that if a man dies without having any sons, his widow called 'Yabamah' in

Judaic terminology should immediately become the wife to his next surviving brother whether she likes it or not, and he has to provide for her and inherits her when she dies.

We reproduce here for the benefit of our readers. the following from the Old Testament:

“If brethren dwell together, and one of them die, and have no child, the wife of the dead shall not marry without unto a stranger: her husband's brother shall go in unto her, and take her to him to wife, and perform the duty of a husband's brother unto her.

And it shall be, that the firstborn which she beareth shall succeed in the name of his brother which is dead, that his name be not put out of Israel.

And if the man like not to take his brother's wife, then let his brother's wife go up to the gate unto the elders, and say ‘My husband's brother refuseth to raise up unto his brother a name in Israel, he will not perform the duty of my husband's brother’

Then the elders of his city shall call him and speak unto him: and if he stand to it, and say ‘I like not to take her.’

Then shall his brother's wife come unto him in the presence of the elders, and loose his shoe from off his foot, and spit in his face, and shall answer and say ‘so shall it be done unto that man that will not build up his brother's house.

And his name shall be called in Israel ‘The house of him that hath his shoe loosed.” Deuteronomy (25/5–10)

Article No. 36 of the Jewish Personal Law confirms this fact. It says: If a man dies without sons, and if he has a full, or a consanguineous brother. his widow is regarded as the lawful wife of that brother. She becomes unlawful to other than him as long as he lives, unless he releases her.

Furthermore, this religion of the Jews, allows a poor father to sell his daughter like a slave, to relieve himself from misery².

In short, this distorted religion degrades the status of women and looks upon girls as saleable commodity.

If we look at the Arabian society during the period of Ignorance before Islam, it also presents a sad picture of the bitter tragedy from which woman suffered. The Arabs used to regard woman as a shame, and hated her existence because they feared disgrace and the consequences of her captivity. An Arab would rather not have a female born to him, and if born, he would not see her face. Hate and spite overwhelmed the souls of those cruel men to such an extent that some of them used to bury their new-born daughters alive, even when the babies started walking and playing around.

As a result of this absurd and ignorant way of thinking, woman became a commodity or a property in the ignorant Arabian society, to the limit of allowing a son to marry his stepmothers. The glorious Qur'an illustrates this horrible picture of Arab Jahiliyya. denouncing all its customs, attitudes, and thoughts about women.

وَإِذَا بُشِّرَ أَحَدُهُم بِالْأُنثَىٰ ظَلَّ وَجْهُهُ مُسْوَدًّا وَهُوَ كَظِيمٌ

“When if one of them receives tidings of the birth of a female, his face becomes dark, and he is full of wrath” (Surah An-Nahl, 16:58).

يَتَوَارَىٰ مِنَ الْقَوْمِ مِنْ سُوءِ مَا بُشِّرَ بِهِ ۚ أَيُمْسِكُهُ عَلَىٰ هُونٍ أَمْ يَدُسُّهُ فِي التُّرَابِ ۚ أَلَا سَاءَ مَا يَحْكُمُونَ

“He hides himself from the folk because of the evil of that which is announced to him, [asking himself] Shall he keep it in disgrace, or bury it [alive] beneath the dust? Now surely evil is their judgement” (Surah An-Nahl, 16:59).

وَإِذَا الْمَوْءُودَةُ سُئِلَتْ

“And when the one that was buried alive [girl-child] is asked” (Surah At-Takwir, 81:8).

بِأَيِّ ذَنْبٍ قُتِلَتْ

for what sin she was killed.” (Surah At-Takwir, 81:9).

وَلَا تَنْكِحُوا مَا نَكَحَ آبَاؤُكُمْ مِنَ النِّسَاءِ إِلَّا مَا قَدْ سَلَفَ ۚ إِنَّهُ كَانَ فَاحِشَةً وَمَقْتًا وَسَاءَ سَبِيلًا

“And marry not those women whom your fathers married, except what has already happened [of that nature) in the past. And surely it was ever lewdness and abomination, and an evil way” (Surah An-Nisa’, 4: 22).

As regards the concepts of the Christian Church, they are a queer admixture of Jewish ideas and the pagan Roman state. The Church's attitude towards woman is explicitly explained by one of the first poles and apostles giving the distorted opinion of Christianity about woman: “She is the entrance used by Satan to enter man's soul. She pushes one towards the prohibited tree, violating the law of God, and disfiguring the image of God, that is the image of Man.”³

A noted Christian scholar, says the following about woman:

“She is an unavoidable evil, a desired plague, a danger to family and home, a murderous beloved, and a gilded calamity.”⁴

Thus, it was natural after the growth of the European modern materialistic culture to react and reject these savage, mythical and backward Jewish and Christian concepts which for centuries had ruled the thoughts of peoples of Europe, America, and other places.

So, naturally, these misconstrued theories about sex and woman, and her relationship to man, life, and civilization, fell to pieces and materialistic Europe consequently had to formulate its own theories to fill the resulting vacuum. It based them on the Greek and Roman cultural heritage on one hand, and the result of a counteraction against woman's tragic position under the inherited concepts, laws and values of distorted Judaism and Christianity, on the other.

But sadly, this modern theory, though calling for the destruction of those false mythical concepts, and voicing the slogan of liberty and woman's emancipation, fell a prey to its own pleasure-seeking conscience.

This materialistic concept of pleasure, sex, enjoyment and instinctive pursuits, advocated by the modern European culture distorted woman's status, the concept of sex and the relationship among man, woman and life, causing more harm than the fossil ecclesiastic concepts and the remnants of Jewish thought.

Under this modern culture, the woman was dipped deeper into the filths of degradation, and the claws of social tragedy tightened closer around her neck. This trend did not give her any chance to get out of the calamity of contempt, servitude and the state of despising her own humanity, and she plunged herself in to the anarchy of wanton enjoyment, loss of values and the pains of family and psychological sufferings, imposed upon her by this sick and decaying culture. In a way, as if trying to escape from the frying pan, she fell into the fire itself.

Thus, by analysing the status of woman in Europe, America, Japan, Russia and other parts of the world affected by this materialistic current, one sees tragic and painful results. At the same time, we realize that the civilization of this ignorant man is finally going to collapse, as its caravan stumbles on rock upon rock while passing through the deserts of loss and stray. We recognize it to be a repetition of what had been experienced by the past ignorant nations, whose misery has been described by the Qur'an:

كَالَّذِينَ مِنْ قَبْلِكُمْ كَانُوا أَشَدَّ مِنْكُمْ قُوَّةً وَأَكْثَرَ أَمْوَالًا وَأَوْلَادًا فَاسْتَمْتَعُوا بِخَلْقِهِمْ فَاسْتَمْتَعْتُمْ بِخَلْقِكُمْ كَمَا اسْتَمْتَعَ
الَّذِينَ مِنْ قَبْلِكُمْ بِخَلْقِهِمْ وَخُضْتُمْ كَالَّذِي خَاضُوا ۖ أُولَٰئِكَ حَبِطَتْ أَعْمَالُهُمْ فِي الدُّنْيَا وَالْآخِرَةِ ۖ وَأُولَٰئِكَ هُمُ
الْخَاسِرُونَ

“Like those before you were mightier than you in strength, and more affluent than you in wealth and children. So, they enjoyed their portion, thus have you enjoyed your portion as those before you did enjoy their portion. And you entered into vain discourses like the vain discourses in

which those before you entered. These are they whose works are null in this world and the hereafter. These are they who are the losers” (Surah At-Tawba, 9:69).

Despite the claims of this culture about woman's emancipation, rights and equality, the problems of woman, sex and her relationship with man and society have become more complex and dangerous, threatening the happiness of not the family alone, but the society as a whole. Actually, such claims have become the cause of woman's misery, destroying her human nature. Figures and statistics come out every day with terrifying and painful facts, warning of an incoming destruction that forces the contemporary man to reconsider his understandings and concepts about sex, man, woman and social relations.

In order to place before the reader a testimony backed by statistics and figures obtained from relevant studies, here are some examples that speak of the terrible pictures of loss and tragedy under the modern materialistic culture, concerning family problems, such as divorce, adultery, illegitimate children, and the misery of the family life of the contemporary man and woman.

“Al-Qabas” newspaper in its issue of 11.7.1979, reported that: “12,713 housewives had fled their houses during the year before in Japan, on an average of 35 housewives a day. The Japanese Police disclosed these figures on Mother's Day, because of demands by children and husbands looking for their absconding mothers and housewives. Most of those disappearances were caused by family disputes, cruelty of husbands and the like, the police said. The number of housewives who elope with other men, deserting their husbands and children, is on the increase. The police also added that 400 housewives deserted their homes because of debts.”

Dr. Homer, a Swede, when asked by the United Nations to study the status of women in Arab countries in 1975, announced: “It is the Swedish woman who should demand her freedom, as the woman in the Arab countries has already reached the peak of her freedom under Islam”. She added “the Swedish woman tries these days to have this year announced as 'The International Year of the Woman', and then declare another year for the man, so that he may extract his rights from the woman.”

Dr. Homer continues in her report: “25% of Swedish women suffer from psychological and nervous sicknesses, and 40% of Sweden's income is spent on these diseases caused by the so-called freedom which the Swedish woman attained and which she is practicing. In fact, the tragedy of the Swedish woman is this very permissiveness which has taken her to the edge of such a terrifying and perilous precipice.”

Premarital pregnancies are at epidemic proportion in the U.S. where adultery runs rampant.

Homosexual and bisexual men and women often openly express their sexual preferences.

With unwanted pregnancy comes the moral question of abortion – taking the life of an unborn child.

Sexually transmissible diseases have become a world-wide horror.

A recent study reported by Associated Press showed: Four out of every five single American women in their 20s have had sex. One in three had lived with a man out of wedlock. One third of all these women had been pregnant at least once, and 40% of those who became pregnant had an abortion.

Those statistics seem to be symptomatic of the nation if not most of the Western World.

Husbands and wives are too often unfaithful to their marriage vows. Children learn this lack of values from parents and the cycle is perpetuated. So once again we are faced with another problem unsolvable at the human level. In another report disclosing the human tragedy under the materialistic culture, the American Association for Family Services says: The disintegration of the family, which has reached an epidemic stage, tops the list of social problems. Every year more than one million persons are separated or divorced, which is seven-fold higher in percentage compared with that of a century ago.

Another report says: The U.S. Federal Bureau of Investigation (FBI) reports that in murder cases within families, the husbands are mostly the murderers of their wives; and in 15% of family crimes the children are the victims of their parents.

According to recent statistics released by UNESCO, 60% of the housewives in the U.S.A. and Europe feel discontented, disappointed, and miserable.

In the U.S. 6,500 people are divorced each day, in other words well over a million each year.

Recent surveys show that between 21 and 43 percent of married women in U.S. have committed adultery.

Juvenile crime and violence have increased since World War Two in the U.S. In 1950 1 out of 8 serious crimes were committed by youths under 18 years but in recent years the figures have soared to 2 out of every 8. Youth suicide is on the increase, children are neglected.

Between 1900 and 1985 in the U.S., the divorce rate increased by 70%. Today one out of every 3 marriages (1 out of 2 in many large cities) ends in divorce or separation. Illegitimate births among certain segments of society are over 50%.

The West and other non-Islamic societies continue to produce illegitimate children in great proportions. Wife-beating, runaway children, parent beating, child abuse, broken marriages are rampant in such societies.

A report concerning divorce cases in the UK due to infidelity of the spouses shows the following figures:

Year	Number of Divorces
1950	29096

1960	27870
1969	60134
1970	70575
1971	110017
1972	109822
1973	115048
1977	146000
1979	170000
1981	181000

The October 1985 issue of Woman's World has disclosed the following startling facts which prove the decadence of non-Muslim societies:

- 1 in every 6 children born in the U.K in 1984 was illegitimate.
- A poll conducted for woman married 5 to 15 years showed that 2 out of 5 women admitted having an extra-marital affair.
- A poll at a high school for girls showed that three quarters of the girls did not want to marry at all and preferred sex without marriage.
- The number of rapes increased by 27% during the first six months of this year, compared to the same period last year. The Home Office disclosed that a total of 780 rapes occurred in England and Wales alone, compared to the official figure of 613 in the first half of 1984.
- According to a leading psychologist of the National Children's Home. 1 in every 5 British children suffers from sexual or physical abuse. Blaming the epidemic on the breakdown of family life, he said that the children were abused by their step-fathers or their mother's live-in lovers.
- A national survey conducted by an educational psychologist indicated that as many as 1 in every 10 adults in the U.K. were sexually abused during childhood.

Still another report says: "Nine out of 12 girls in Britain are subjected to rape and kidnapping."

The British News Agency 'Reuter' in its dispatch of December 3rd, 1985, said an average of 4 children a week are killed in Britain by their parents or guardians, according to the National Society for the Prevention of Cruelty to Children (NSPCC). Saying that the problem is far more serious than anyone realizes, a spokesman for the NPSCC disclosed the horrible figure of 200 children dying each year from parental abuse and besides every two weeks a child is slain in Britain by strangers or other relatives.

Council registers in England, Wales and Northern Ireland were found to list a total of 30,000 child victims of abuse, representing an increase of more than 5,000 new cases discovered in the past two years.

The figures were revealed by Brian Raycroft, leader of the Association of Social Service Directors at a judicial inquiry into child abuse in Cleveland, Northern England. He said that the rise was even higher than 22 percent in some areas and described the situation in Cleveland as "alarming." The numbers showed significant increases in regions where separate statistics were kept for sexual offences against children, he pointed out.

The breakdown of family stability in Britain which has dramatically increased the numbers of unmarried mothers, of unmarried people living together and people living alone, is much to blame for these social ills.

According to new figures published by the U.K. Government on January 14th, 1988, the percentage of illegitimate births has soared from 4 percent in the 1950s to 21 percent of all births in 1986. Only Denmark with 43 percent has a higher rate in Europe.

The statistics of social trends confirm that Britain has the highest divorce rate in Europe and nearly twice the rate in France and West Germany.

Between 1979 and 1985, it was found that the proportion of people cohabiting without marriage nearly doubled. Some 15 percent of all single women between the age of 18 and 49, and including many divorced, were illicitly cohabiting in 1985.

The breakdown in family life has also seen a rapid rise in people living alone. Nearly 25 percent of all households contained only one person in 1986 compared with an average 10 persons in 1951.

The way the woman is treated in the western countries who claim to be the champions of freedom and equality is evident from the International Meeting on Women and Mass Media held at Athens, Greece, November 20. 1985.

One of the participants, Petra Kelly, a member of the West German Parliament bitterly complained, "In Germany they treat us like a minority, equal to invalids, the lower strata of society and like children. They portray us pornographically and consider using violence against us as natural. Every 15 minutes one woman is a victim of rape."

The Meet urged the Greek Parliament to pass a law banning exploitation of women on the T.V. Though criticisms of the exploitation of women is fully justified, the women of these so –called advanced countries are themselves to be blamed. If women did not consent, there would be no pornographic publications, sex films and nude advertisements.

Turning to the East, we find the decadence of society, in the communist world equally shocking. The Magazine, 'Interphase' in its April 1977 issue reports:

“The grave problem of the Soviet communist society is that, out of every two marriages one ends in divorce in most parts of Western Russia. In Moscow, for example, nearly 49% of the marriages ended in divorce, after the birth of the first child. In the Mavadansk region the percentage of divorce is as high as 72.9 percent. The Physicians' Conference held at Moscow University in 1975 called for urgent measures to tackle this grave social problem, concerning the high divorce rate and the low birth rate ...” [5](#)

It is evident from the report that according to the latest statistics, the number of Muslims in the Soviet Union have been increasing at a rate much higher than the usual population growth, while, at the same time the birth rate in nonIslamic regions of the Soviet Union is falling lower, a fact which is worrying the Russians.

The reports and statistics confirm that all attempts to separate the Muslims from Islam have come to naught, and that the Islamic spirit has shown unprecedented growth, and the underground Islamic movements have started to grow and spread out.

The demonstrations held in the streets of Baku, the capital of Soviet Azerbaijan after the triumph of the Islamic Revolution in Iran, are a proof of the Islamic resurgence in Soviet Union, as also the sympathy shown for Afghan Mujahideen fighting against the Russian imposed communist regime in Kabul. Moreover, there have been frequent reports of desertion by Muslim soldiers from the occupying Soviet army in Afghanistan.

It is possible that this increase in the Muslim population was responsible for the recent principal amendment of the Soviet Constitution which formerly allowed the so–called autonomous Republics under Russian colonial control to withdraw from the Union on the basis of self–government. The Soviets fear that the Muslims in the Soviet Union may become a majority by the end of this century.

Thus, by analysing the above facts, we discover the significance of the political and social connections in the Islamic system which exercise a deep influence on the life of Muslims.

We also realize the importance of the Islamic family system in positively effecting the lives of the Muslims, even if it is not strictly adhered to.

The following statistics reveal how alarming the family breakdown epidemic has become in non–Muslim societies:

France: One in four marriages ends in divorce: in cities the rate may be 50 percent. Each year 600,000 couples marry, 100,000 choose to live together without marriage and 100,000 divorce.

Canada: Almost 40 percent of first marriages end in divorce. The divorce rate doubled between 1972 and 1982.

The Soviet Union: About 70 percent of marriages will break up in 10 years, according to Moskovskaya Pravda. Factors involved include drunkenness, lack of money and lack of privacy.

Central And South America: The UNESCO Courier stated that single parent families are often created by women migrating to the cities and having children in a series of unstable unions. Due to alcohol abuse or the inability of husbands to find adequate work locally, the family breaks up and mothers and children are left in poverty.

The nations with the highest percentages of illegitimate births in the world are in the Caribbean and in Central and South America.

China: Although China's divorce rate is lower than most Western nations, it has risen 70 percent in five years. The Peking Review reported that "the divorce rate" is rising dramatically.

Britain: The divorce rate in the U.K. is the highest in Western Europe. Nearly one in seven single women aged 18 to 49 lives with a man she has not married.

United States: Half the marriages this year will probably end in divorce. Sixty percent of the children born this year will spend part of their childhood in a single-parent family.

Japan: The divorce rate has doubled in the past 20 years. Before 1947, men were allowed to evict their wives into the streets with only a short note of divorcement. Now, about 70 percent of divorce cases are initiated by women.

Going back to the analysis and evaluation of the sexual relations. and woman's status and position under the European materialistic culture, we realize that not only did it ruin society and family life through divorce, illegitimate children, abortion, rape, misery. frustration, increase of juvenile delinquency, etc., but this evil plague even affected physical health of both man and woman, because of the disordered, abnormal, and beastly sexual relations practiced by both sexes, under the patronage of this declining culture of ignorance.

Reports of physicians, health institutes and other relevant statistics testify what has been said, and give warning signs.

Below are some examples:

Dr. Lirbete, a French physician, reports that, "In France 0,000 people die every year from diverse

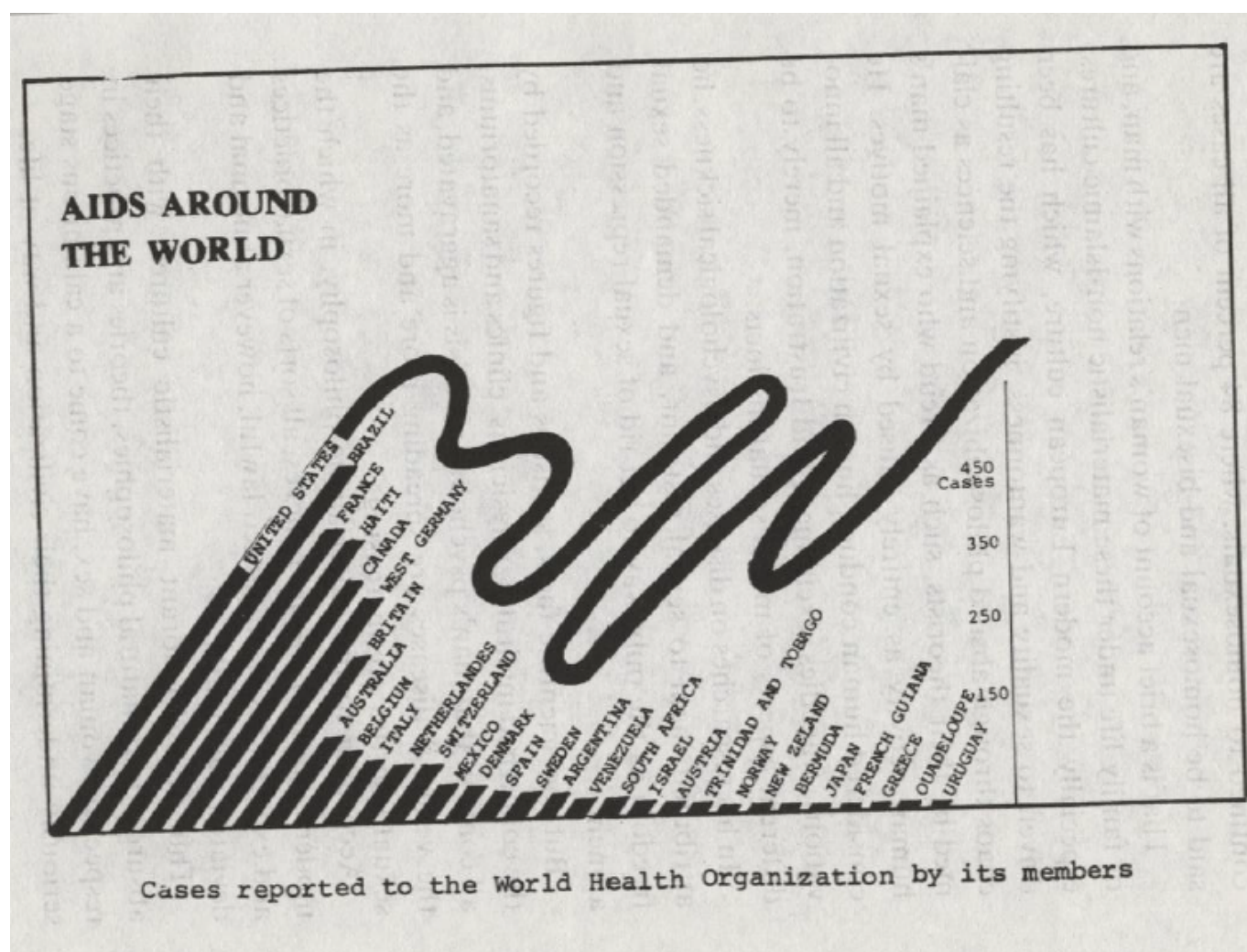
venereal diseases as a result of adultery.

Abul A 'la Al-Mawdudi, in his book "Al-Hijab" (The Veil) writes. "...It is estimated that 90% of the US population are afflicted with venereal diseases."

The Encyclopaedia Britannica mentions that in 650 government hospitals in U.K, 100,000 patients are treated for syphilis and another 160,000 for gonorrhoea.

But the figures fade into insignificance, when compared with the private clinics who treat an estimated 61% syphilis patients and 89% gonorrhoea patients, it adds.

Furthermore, some 30 to 40 thousand children in the US. die from inherited venereal diseases every year. Reliable sources say that at least 60% of the youth population, irrespective of singles or married are afflicted with gonorrhoea. Venereologists stress that 75% of women that undergo venereal operation are found to be infected with venereal diseases.



The World Health Organization (WHO) has estimated there are between 30 million and 50 million cases of venereal syphilis in the world and more than 150 million cases of gonorrhoea infection. Director-general of the WHO, Halfdon Mahler, estimates there may be 10 million carriers of them confined to homosexuals, where 84 percent of all cases are said to be homosexual and bisexual men.

That is a brief account of woman's relations with man, and of family life under these materialistic non-Islamic cultures, especially the modern European culture, which has been driven to sexuality and wantonness, justifying the resulting chaos through absurd philosophizing and sciences as claimed by their theorists, such as Freud who explained man's human activity as entirely caused by sexual motives. He considered human conduct, human civilization and all innovations, tragedies, excitement, and frustration, merely to be different aspects of man's sexual instincts.

In his research on diseases and psychological sickness, he attributed them to sexual restraint, and demanded sexual freedom as the only way to get rid of sexual repression and ailment.

But the scientific facts, statistics and figures recorded by the concerned institutes, physicians' clinics and sanatoriums all confirm that man's psychological crisis is aggravated, and the venereal diseases are spreading more and more as the sexual liberties are increasing.

According to the materialistic philosophy in which the modern ignorant culture believes, all sorts of sexual practices and expressions are regarded lawful, however abnormal and deviated they may be.

Thus, these ignorant materialistic cultures with their absurd and unnatural philosophies theories and practices in respect to woman and sex. have come to a calamitous stage seriously undermining their civilization and way of life.

1. Al-Suba'i Dr. Mustafa, "Woman between Shariah and Laws". p. 19, 4th. ed.
2. Wafi, Dr. Ali Abdul Wahid, "Al-Mar'afi Al-Islam", pp. 15, 16.
3. Al-Mawdudi, Abut A'la, "Al-Hijab", p. 22.
4. Al-Mawdudi, Abut A'la, "Al-Hijab", p. 22, op. Cit..
5. It is worth noting that the said family problems are confined to the non-Islamic regions of the Soviet Union Despite communism's suppression of Islamic teachings in the Muslim lands under the Russians, Islam still exercises its influences on the life and social conduct of the Muslims there, reducing family instability and the exploitation of women.

Women And The Unity Of The Human Species

يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاكُمْ مِنْ ذَكَرٍ وَأُنْثَىٰ وَجَعَلْنَاكُمْ شُعُوبًا وَقَبَائِلَ لِتَعَارَفُوا ۚ إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتْقَاكُمْ

“O mankind! Surely we have created you of a male and a female, and have made you nations and tribes that you may know one another. Surely the noblest of you, in the sight of Allah, is the best in conduct...” (Surah Al-Hujurat, 49: 13).

يَا أَيُّهَا النَّاسُ اتَّقُوا رَبَّكُمُ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَخَلَقَ مِنْهَا زَوْجَهَا وَبَثَّ مِنْهُمَا رِجَالًا كَثِيرًا وَنِسَاءً ۚ وَاتَّقُوا

اللَّهُ الَّذِي تَسَاءَلُونَ بِهِ وَالْأَرْحَامَ ۖ إِنَّ اللَّهَ كَانَ عَلَيْكُمْ رَقِيبًا

“O mankind! Be careful of your duty to your Lord Who created you from a single being and created you its mate of the same (kind) and spread from these two a multitude of men and women. Be careful of your duty towards Allah by Whom you claim (your right) of one another, and the ties of relationship. Surely Allah watches over you” (Surah An-Nisa’, 4: 1).

It is a fundamental basis taken for granted that a thinker, or a researcher, studying Islam, should base his researches and studies on a scheme ·adhering to monotheism and sincerely believe in the oneness of Allah, which would enable him to comprehend Islamic laws and values. Without such a scheme the study would be fruitless, and the researcher's judgements would fall short of his aim of understanding the truth.

Belief in Allah, the One Who is all Knowledge, all Wisdom, all Justice, and all-Powerful will have direct effect on the researcher's attitude towards Divine legislation and laws.

Accepting these facts leads to a belief that these attributes are reflected in the divine legislations, which are in fact all based on realistic foundations. Should this belief and concept be implanted and grown inside the mind and conscience of the one who deals with the Islamic religion, he would recognize these attributes – justice, wisdom, and realistic knowledge –personified in him, as stated by Islam.

Now, by following this basic principle in dealing with Islam and its teachings, laws, concepts, and legislations organizing the relations between man, woman and family, we would realize that they are scientific concepts based on reason with no place for legend, petrification or injustice.

These concepts can be inferred from making a scientific comparison between the status of woman under Islam and her disgraceful status under non – Islamic laws and concepts devised by man – a part of which has already been related.

Once again, we quote verses from the Glorious Qur'an to confirm that Islam builds all its concepts, values and laws concerning family, woman and her relations with man and society, from a scientific and rational angle – the belief in the oneness of the human species, – and in the fact that man and woman are joined together as human beings, with no actual difference between them:

هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَا

“He it is Who did create you from a single being, and of the same (kind) did He make his mate that he might incline to her...” (Surah Al-A’raf, 7: 189).

يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاكُمْ مِنْ ذَكَرٍ وَأُنْثَى

“O mankind! Surely, We have created you of a male and a female...” (Surah Al-Hujarat, 49: 13).

In Islam, Man and Woman are the twin rails of the train of life. Islam makes no distinction between man and woman as human beings.

Both are of the same soul, the noblest of them is the best in conduct, whether man or woman. Islam has no special regulations for man, and different ones for woman, except within the frame of their particular physical and natural characteristics, suiting their different roles in life.

Consequently, the so called advocacy of woman's rights claiming to liberate her, and regarding her equal to man in knowledge, politics, civil rights, etc. are alien calls to Islam, and totally strange. In Islam the need never arises for such calls about liberating her and giving her rights, for Islam does not prevent a woman from any right.

In fact, Islam has already granted the woman her rights on the same day on which it gave man his. It dealt with the two halves of the society – man and woman –on the same humane basis.

Stressing the oneness of the human species and equally attributing the human characteristics to both man and woman, Islam established all its laws and values based on the principle of "The Oneness of the Human species," the species to whom Allah has granted power of reason and treats affectionately.

As for the allegations, arguments and cries arising from here and there creating a fury among Muslim societies, sadly it reflects the fact that this struggle between the two currents has nothing to do either with Islam or the rights of a woman.

It is a struggle, on one hand, between a current of lewdness and unrestrained sexual behaviour that has sneaked in along with European cultural and educational raid on our Islamic world, and on the other hand, a primitive current that is still adhering to certain outdated social customs and traditions left behind by backward environmental circumstances, across many centuries. These concepts about woman and her relation to man, society, and life, have no connection whatsoever with Islam and its lofty values and ideals.

Unfortunately, these social attitudes are the offspring of the decadence of Muslims societies, and a factor pointing out the absence of Islamic concepts and relations.

Therefore, in order to have a correct understanding of Islamic ideals, it is necessary to distinguish between woman's status in the Islamic countries and her status according to Islamic laws, principles and values. It is unjust to regard Islam – as a religion and law –responsible for the backwardness of the Muslims, nor is it right to convict Islam in anyone of its aspects because of the backward social life lived by the Muslims ever since they drifted away from its teachings and neglected it in practice and application.

Status Of Women In Islam

Islam Respects Women

In the Islamic society the woman has an honoured position and, beside her legal and civil rights, enjoys special respect, love, affection, and the gentle feelings which she deserves most.

Is she not the compassionate mother, the beloved wife, and the affectionate daughter? The best expression of this reality is provided by the following verses from the Glorious Qur'an.

وَوَصَّيْنَا الْإِنْسَانَ بِوَالِدَيْهِ حَمَلَتْهُ أُمُّهُ وَهْنًا عَلَى وَهْنٍ وَفِصَالُهُ فِي عَامَيْنِ أَنِ اشْكُرْ لِي وَلِوَالِدَيْكَ إِلَيَّ الْمَصِيرُ

“And We have enjoined man concerning his parents – His mother bears him in weakness upon weakness, and his weaning takes two years – Be grateful to Me and to your parents. To Me is the eventual coming” (Surah Luqman 31: 14).

وَإِنْ جَاهَدَاكَ عَلَى أَنْ تُشْرِكَ بِي مَا لَيْسَ لَكَ بِهِ عِلْمٌ فَلَا تُطِعْهُمَا ۚ وَصَاحِبُهَا فِي الدُّنْيَا مَعْرُوفًا ۚ وَاتَّبِعْ سَبِيلَ مَنْ أَنَابَ إِلَيَّ ۚ ثُمَّ إِلَيَّ مَرْجِعُكُمْ فَأُنَبِّئُكُمْ بِمَا كُنْتُمْ تَعْمَلُونَ

“And they strive with you to make you associate with Me that of which you have no knowledge, do not obey them. Keep company in the world with them kindly, and follow the path of him who repents to Me. Then to Me is your return and I shall inform them of what you did” (Surah Luqman 31: 15).

وَوَصَّيْنَا الْإِنْسَانَ بِإِحْسَانٍ ۚ حَمَلَتْهُ أُمُّهُ كُرْهًا وَوَضَعَتْهُ كُرْهًا ۚ وَحَمَلُهُ وَفِصَالُهُ ثَلَاثُونَ شَهْرًا ۚ حَتَّىٰ إِذَا بَلَغَ أَشُدَّهُ وَبَلَغَ أَرْبَعِينَ سَنَةً قَالَ رَبِّ أَوْزِعْنِي أَنْ أَشْكُرَ نِعْمَتَكَ الَّتِي أَنْعَمْتَ عَلَيَّ وَعَلَىٰ وَالِدَيَّ وَأَنْ أَعْمَلَ صَالِحًا تَرْضَاهُ وَأَصْلِحْ لِي فِي ذُرِّيَّتِي ۚ إِنِّي تُبْتُ إِلَيْكَ وَإِنِّي مِنَ الْمُسْلِمِينَ

“And We have commanded man to be kind towards his parents. With trouble did his mother bear him, with trouble did she bring him forth; and the bearing of him and the weaning of him was thirty months; until when he attains his maturity and reaches forty years, he says: My Lord! Arouse me that I may give thanks for your favour which you have bestowed upon me and my parents, and that I may do good which pleases you. And be gracious to me in the matter of my offspring. Surely, I turn to you, and surely, I am of those who submit” (Surah Al-Ahqaf, 46: 15).

وَقَضَىٰ رَبُّكَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ وَبِالْوَالِدَيْنِ إِحْسَانًا ۚ إِمَّا يَبْلُغَنَّ عِنْدَكَ الْكِبَرَ أَحَدُهُمَا أَوْ كِلَاهُمَا فَلَا تَقُلْ لَهُمَا أُفٍّ وَلَا

تَنْهَرُهُمَا وَقُلْ لَهُمَا قَوْلًا كَرِيمًا

“Your Lord has decreed that you worship none save Him, and (you show) kindness to your parents. If one of them or both of them reach old age with you, say not ‘Fle’ to them nor repulse them, but speak to them a generous word” (Surah Al-Isra’ or Bani Isra’il, 17:23).

وَاخْفِضْ لَهُمَا جَنَاحَ الذُّلِّ مِنَ الرَّحْمَةِ وَقُلْ رَبِّ ارْحَمْهُمَا كَمَا رَبَّيَانِي صَغِيرًا

“And make yourself submissively gentle with compassion and say: O Lord! Have mercy on them both as they did for me (when I was) little” (Surah Al-Isra’ or Bani Isra’il, 17:24).

وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً ۚ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy. Most surely there are signs in this for people who reflect” (Surah Ar-Rum, 30:21).

...وَعَاشِرُوهُنَّ بِالْمَعْرُوفِ...

“... And treat them [women] kindly ...” (Surah An-Nisa’, 4: 19).

...وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَّ بِالْمَعْرُوفِ...

“...And they [women] have rights similar of those [of men] over them in a just manner...” (Surah Al-Baqara, 2:228).

...وَإِذَا طَلَقْتُمُ النِّسَاءَ فَبَلَغْنَ أَجَلَهُنَّ فَأَمْسِكُوهُنَّ بِمَعْرُوفٍ أَوْ سَرِّحُوهُنَّ بِمَعْرُوفٍ

“When you have divorced women, and they have reached their prescribed term, then either retain them in honour or release them in kindness...” (Surah Al- Baqara, 2:231).

The Traditions of the Prophet, like the Qur'an, also lay emphasis on the honour and status of the woman and grants her a respectable place in society. When a Tradition speaks of a woman and her social position, it surrounds her with a frame of love, endearment, and affection, especially when it speaks of the mother, the wife and the daughter.

The Messenger of Allah (S), addressing the Muslims on the occasion of the Farewell Pilgrimage warned them against the values which he feared would be neglected after him, and referred to woman as one of the important issues about whom he said:

“Observe your duty to Allah in respect to the women and recommend them to be well treated.”^{[1](#)}

According to the Imam Ja'far Al –Sadiq (‘a),^{[2](#)} the Prophet stressed his proximity to woman and her position in his life, by saying:

“It is of the manner of the Prophets to love women.”^{[3](#)}

He is also quoted to have said:

“I do not think that a man gets better in faith without loving women better.”^{[4](#)}

A man once sought the Imam Al–Sadiq's (‘a) advice concerning women, saying that as his wife, who was agreeable to him, had died, he wanted to marry again. The Imam told him, *“See where you put yourself, whom you take as a partner in your life, and to whom you disclose your religion and secrets. So, if you have to, then marry a virgin known to be righteous and of good behaviour”*

A man came to the Prophet (S) and asked him, *“O Messenger of Allah! Whom should I be more dutiful to?”* The Prophet (S) replied, *“To your mother.”* He asked, *“Then to whom?”* He replied, *“To your mother.”* The man again asked, *“Then to whom?”* The Prophet said, *“To your father.”*^{[5](#)}

It is narrated that a foster–sister of the Prophet (S) visited him one day. He was very pleased with her, spread out his cloak for her to sit on, and conversed with her merrily. After she went away, her brother arrived, but the Prophet did not receive him as warmly as he had received his sister. Later on, when someone asked him the reason for receiving the sister more courteously than her brother, although a man, the Prophet replied, “Because she was more dutiful to her parents than he.”^{[6](#)}

Abu Khadija quotes the Imam Al–Sadiq (‘a) as follows:

A man came to the Prophet and told him, ‘A girl was born to me. I brought her up till she reached puberty, I then dressed her, adorned her, brought her to a well and pushed her into it. The last thing I heard was her pitiful cry: “O father!” So what atonement may I offer?’

The Prophet asked him, “Is your mother alive?” He replied, “No.” He asked, “Do you have an aunt?” He said, “Yes.” The Prophet instructed him, “Then be dutiful to her, as she is like a mother, this will be our atonement for what you have done.”

Abu Khadija asked the Imam; “When did the incident take place?” He replied, “During the period of Ignorance. As they used to kill the girls for fear that they would be taken captive and give birth to their children among other people”^{[7](#)}

The Imam Al-Sadiq (‘a) is also quoted to have said: *“Whoever provides sustenance for three girls or three sisters, Paradise will surely be his.”* He was asked. *“What if two?”* He said, *“Even if two.”* He was also asked, *“What if one?”* He said, *“Even if one.”*⁸

The Imam Abu Al-Hasan Ar-Ridha’ (‘a) is quoted to have said: *“The Prophet (S) said, ‘Allah the exalted is more kind to females than males. Whoever brings pleasure to a woman of his close relatives, Allah will please him on Judgement Day.’”*⁹

The Imam Al-Sadiq (‘a) said: *“Sons are a favour and daughters are good deeds, Allah questions about the favours, but rewards the good deeds.”*¹⁰

The above were some of the examples from Islamic texts concerning woman. It is clear that Islam has called her to be honoured, affectionately treated, and cared for in an unprecedented way, which no other civilization, culture and society has ever done.

What we have just related is a proof of the spirit of Islam, which came to honour mankind, protect their rights and to spread the wings of mercy all over the world.

وَمَا أَرْسَلْنَاكَ إِلَّا رَحْمَةً لِّلْعَالَمِينَ

“We have not sent you but as a mercy to the worlds” (Surah Al-Anbiya, 21: 107).

Therefore, Islam, through the above-mentioned texts, speaks respectfully of woman – the mother, the wife, the daughter, the sister, endears her and takes care of her, stressing her being worthy of affection, mercy, and generosity. It recommends woman before recommending man. It regards the love of woman as a sign of faith. Nay, it even raises this love of woman to the level of being a 'prophetic conduct', and it looks at her as a trustee who looks after a person's wealth, religion and secrets.

The Rights Of Woman In Society

Based on these principles, Islam grants woman equal rights with man, except where there are natural differences connected to the physical, psychological, and sexual constitution as well as social position.

Islam grants woman the following rights:

1. The Right To Learn

Actually, Islam commands both men and women to learn. A Tradition says: *“Seeking knowledge is a duty imposed on all Muslim males and females.”*

2. The Right To Work

Both man and woman are given the right to work. All religiously lawful works are open to woman as they are open to man. The married woman, however, is not allowed to work without her husband's permission, because matrimonial rights and family system come first in Islam. It is obligatory for the wife to protect family life and take care of household duties.

3. The Political Rights

In Islam the Woman enjoys full political rights, except nomination to the post of the Head of the State and a Judge which are exclusively reserved for a man. She participates in all political and social activities like electing the Head of the State, the nation's representatives in the parliament, etc. She may be member of all kinds of establishments, organizations, and parties. She may even be a minister, a parliament deputy and may manage other diverse political posts.

The Qur'an speaks about women's allegiance to the Messenger of Allah (S); and history is a witness that women did take the oath accepting the sovereignty of the Prophet and his successors:

يَا أَيُّهَا النَّبِيُّ إِذَا جَاءَكَ الْمُؤْمِنَاتُ يُبَايِعْنَكَ عَلَى أَنْ لَا يُشْرِكْنَ بِاللَّهِ شَيْئًا وَلَا يَسْرِقْنَ وَلَا يَزْنِينَ وَلَا يَقْتُلْنَ أَوْلَادَهُنَّ وَلَا يَأْتِينَ بِبُهْتَانٍ يَفْتَرِينَهُ بَيْنَ أَيْدِيهِنَّ وَأَرْجُلِهِنَّ وَلَا يَعْصِيَنَّكَ فِي مَعْرُوفٍ ۖ فَبَايِعْنَهُنَّ وَاسْتَغْفِرْ لَهُنَّ اللَّهُ ۚ إِنَّ اللَّهَ غَفُورٌ رَحِيمٌ

“O Prophet! If believing women come to you, taking oath of allegiance to you that they will ascribe nothing as partner to Allah, and will neither steal nor commit adultery nor kill their children, nor produce any lie that they have devised between their hands and feet (forged) nor disobey you in what is right,¹¹ then accept their allegiance and ask Allah to forgive them. Surely Allah is Forgiving and Merciful” (Surah Al-Mumtahana, 60: 12).

Actually, this oath of allegiance is obligatory on women as it is on men, since it is the acceptance of the religious guardianship of the Head or the “Imam” of the Islamic nation.

4. The Civil Rights

Woman, like man enjoys full legal rights. She may inherit, buy, sell, give, take, conclude contracts, etc. In Islam, the woman has legally an independent personality, and her obligations are independent from those of her father, husband, or brothers. Thus, the woman in Islam enjoys all rights and is treated equally to man in this respect.

¹. Al-Harrani, “Tuhafal ‘Uqul’ ‘An Al-Rasul”, p. 30.

². (‘a) abbreviation for the Arabic phrase (‘alayhi/ha/him as–Salam) (may peace be upon him/her/them).

³. Al –Kulayni, “Furu’ Al Kafi,” Vol 5. p. 32. 3rd ed.

⁴. Al –Kulayni, “Usul Al Kafi,” Vol 2. p. 159. 3rd ed.

5. Al –Kulayni, “Usul Al Kafi,” Vol 2. p. 159.

6. Al –Kulayni, “Usul Al Kafi,” Vol 2. p. 161.

7. Al –Kulayni, “Usul Al Kafi,” Vol 2. p. 162.

8. Al –Kulayni, “Furu’ Al Kafi,” Vol 2. p. 6.

9. Al –Kulayni, “Furu’ Al Kafi,” Vol 2. p. 6.

10. Al –Kulayni, “Furu’ Al Kafi,” Vol 2. p. 7.

11. This is called “The Women's Oath of Allegiance.” It was the oath exacted from men also until later on the duty of defense was added to the men's oath.

Woman And Family

In the previous study we discussed the position of woman and her human and social status, and also the feelings of men who are related to her, and their general psychological relations.

Here, we talk about woman and family. Woman, in Islam, is the base and the corner-stone in building the family, and is the beloved heart which overflows with the sentiments of love, mercy and calmness.

وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً ۗ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy. Most surely there are signs in this for people who reflect” (Surah Ar-Rum, 30:21).

She is the source of tranquillity, security, and psychological stability for man. She is the centre of the harmonious get-together of the family which protects the children from being waifs and strays. She is the fountain-head of affection, love and mercy for the husband and the children. That is why an organized family is a must, psychologically, socially, and legally, because it is the basic unit for constructing the society, the state, and humanity as a whole.

The more righteous the family and stronger in construction, with its members closely knit with each other, the sounder the society and the freer the life from crime, misery, and spiritual unhappiness. And vice versa, the lower the family declines morally, and the relations among its members deteriorate, the graver the loss and straying, and the deeper the feeling of strangeness, depression and loneliness. In this way man may be deprived of the scent of love and the feelings of kindness and affection. All psychological studies and scientific statistics confirm this fact, and stress that the cause of going astray, spread of crime and the collapse of the personalities of the grown-ups, is the unhappiness suffered during childhood, due to broken-up families, or because of aimless wandering or lack of affection and

parental care.

This proves that a family is a social, psychological, instinctive, economic, and educational necessity, and not an economic phenomenon, as alleged by Marxism (Communism) which advocates sexual freedom, and thereby destroys legal matrimonial life and ruins the family, justifying this by its absurd philosophy interpreting wrongly the history and the appearance of the family and society.

It claims that woman took refuge in man because of an economic drive, since she was weak and unable to hunt and struggle against the cruel nature, while man was living a free life. So, she came to man to live with him to get sustenance and protection. But in the modern era, as the woman is able to provide for herself and her needs without man's assistance, there is no need either for family or for marriage. Both man and woman can satisfy their sexual desires, away from the requirements and responsibilities of a family and a marriage contract, exactly as the animals satisfy their sexual instincts.

Communism believes that the destruction of family life is a necessary step towards the transition to the communist society which is based on the ruins of the state, the religion, the family and private possessions– a society where women become a common property available to every man, as the communists allege, they had been before the appearance of family life. This has been explicitly announced in the Communist Manifesto declared by Marx and Engels, the founders of the theory of Communism:

“To destroy the family! Even the most radical extremists feel angry at this shameful and vile intention of the communists. But on what basis is the bourgeois family erected at present? It is erected on Capitalism and personal interest. It can be found, with its full being and complete construction, only under the bourgeoisie. But its supplement is its inevitable cancellation in respect to the proletariat, and then open prostitution. The bourgeois family is naturally dissolved by the dissolve of its supplement, and both the family and its supplement dissolved by the dissolve of Capitalism.

So, do you blame us because we aim at abolishing the exploitation of the children by their parents and relatives? If you do, then we confess this crime, accusing us of destroying the most sacred connections and relations by our attempt to move education from within the family out into the society.”

Here you are! Marx and Engels are quite legible in openly demanding the destruction of the family, severing the parental relations between the children and their parents, ruining the relationship ties because of libertinism and the absence of legitimate matrimonial relations, and burdening the society – that is, the state establishments – with the rearing of the child after its mother throws it away.

Because of this fabulous thinking, which is contrary to the law of nature and life, communism has failed throughout the world, and has started to retract. The states advocating the application of this theory – the Socialist countries: China, Russia, and their Socialist followers – began facing problems and difficulties in putting the theory into practice. They encountered refusal and stiff resistance. No means of terror and dictatorship could force the people under Communist rule to accept and carry out such

unnatural practices.

It was not Communism alone that demanded sexual liberty. In the capitalistic culture there appeared philosophies advocating similar ignorant concepts about sex, woman and marriage as those voiced by Communism, only these are based on a different interpretation. Instead of the economic interpretation presented by Marxism to explain the rise and development of the family, matrimonial relations and other human activities, Freud – the prominent psychologist in the capitalist culture– presented his 'sexual explanation' of the rise of the family, society and the whole human activity.

Both theories reach the same conclusion, despite their different starting points and distorted explanations.

Freud sees that the sexual desire is the only drive motivating the formation of the family and the relation between man and woman. ¹ In fact, this is not the only theory in the capitalist culture that propagates sexual freedom, as there are other materialistic calls and theories advocating the same philosophy and ideas.

Thus, we see that these materialistic cultures are heading towards sexual libertinism, disintegrating the family structure, and undoing its sacred bonds, and are contended with carnal satisfaction of the sexual needs in any available manner, even by sodomy, or with animals, or by some manufactured means. Some figures and statistics in this respect have already been mentioned.

But the great religion of Islam sees the family as the essential constructive cell in the structure of the society. It stands on natural creative bases, in an exactly defined system. It is a need which the individual and the society cannot do without. To destroy the family would mean destroying the natural law of social life.

Man is sociable by nature and is inclined to make acquaintance with his fellow beings, and to congregate. There is between man and woman a psychological process of perfection, which is other than satisfying a desire. Stopping this process would cause a feeling of loneliness anxiety, tension, and spiritual pain, in both parties. These feelings of love and longing for the other sex and ridding oneself from their tormenting psychological tension, cannot be achieved by merely satisfying the instinct, as the materialistic concepts and libertine theories claim.

The Glorious Qur'an illustrates these psychological principles and natural motives for the formation of families, by saying:

وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً ۚ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy. Most surely there are signs in this for people who reflect” (Surah Ar-Rum, 30:21).

هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَا

“He it is Who did create you from a single being, and of the same (kind) did He make his mate that he might incline to her...” (Surah Al-A’raf, 7: 189).

Therefore, all calls to destroy the family and emphasize the instinctive aspect, have come to nought, by admitting their failure, acknowledging the greatness of the divine law, and the triviality of their counter directions of ignorance.

Communism, which regards the family as a phenomenon of the bourgeoisie society, and demands that it should be abolished, and does its best to do so, has been compelled to fall back and re-confirm the family.

In many countries of the world in Europe, America, and the Communist bloc, the woman began to feel the bitterness of the kind of life imposed on her and longed for a family life with a husband and children, living under the shady branches of the tree of affection and security.

It may be useful to give examples of these attempts as reported by the concerned offices.

One of these reports says:

In Germany more than one million mothers work¹ outside their houses. It was disclosed that 72% of these mothers are nervous, feel general weakness, complain of disorder in their blood circulation, and of heart attacks.

69% of them when back at home at night feel too exhausted, because of their office work, to do any domestic work.

43% of the mothers said that they had consulted their doctors several times during the year for treatment.² The reports confirm that a woman needs to have a family, and longs for a blissful marital life and its enjoyable blessings, having already suffered from avoiding the family, and tasting the misery of loneliness and deprivation from marital love, maternal affection, and the comfort of family life in a happy atmosphere.

The educational authorities in Scotland felt annoyed at the wave of marriages that threatened the school mistresses from staying at their jobs. It was disclosed that in 1960 they employed 1563 schoolmistresses, but at the end of the year 1000 of them had quit for marriage. The authorities said that marriage was threatening the school system.³

An institute in the USA conducted a poll among the women workers. The result was that 65% preferred to go back to their homes. The woman thought that she attained what she had wished. But today, having been exhausted and worn down by the uneven road of work, she would rather return back to her nest and hug her children in her arms.⁴

For this reason, Islam enjoins marriage and the formation of families, strengthening its relations, and supporting its construction, since it is the natural environment for the happiness of the individual and the centre of his comfort and happiness.

- ¹. Although Freud had later on amended his theory as a result of its inability to explain the full extent of human activities, yet the sexual factor in his theory remained the axis around which revolve man's activities and psychological trends.
- ². Muhammad Mahdi Al-Asifi, Nadhariyat Al- Alaqa Al-Jinsiya Fi Al-Quran Al-Karim, p. 82.
- ³. Dr. Mustafa Al-Suba'i Al-Mar'a Bayn Al-Fiqh wa Al-Qanun, p. 257.
- ⁴. Dr. Mustafa Al-Suba'i Al-Mar'a Bayn Al-Fiqh wa Al-Qanun, p. 97.

How Islam Builds The Family

By studying the Islamic religion, and analysing its ideas, laws and values concerning the building and organizing of this great cultural project, 'The Family', one may broadly classify its measures as follows: –

1. The call to build the family.
2. Organizing the family relations.

To complete our study, we shall explain these two steps for the readers' benefit.

The Call To Build The Family

وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً ۚ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy. Most surely there are signs in this for people who reflect” (Surah Ar-Rum, 30:21).

هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَا

“He it is Who did create you from a single being, and of the same (kind) did He make his mate that he might incline to her...” (Surah Al-A’raf, 7: 189).

فَانكِحُوا مَا طَابَ لَكُمْ مِنَ النِّسَاءِ

“...Marry such women as seem good to you” (Surah An-Nisa’, 4:3).

Looking up the lexical meanings of the Arabic words of “husband,” “marriage” and “matrimony” we may understand the psychological, spiritual, social and organic, implications of marriage in the Islamic religion, and the reason why the Quran uses the word “Spouse” (Zawj – زوج) for both the man and the woman bound together with a legal tie, and the word “Marriage” (Nikah – نكاح) for the coupling process, and the lawful enjoyment between husband and wife.

In the Arabic language, to marry means to consort and mix.

“The rain married the earth” means that it mixed with the soil of the earth.

“The trees married” means that the trees consorted or got closer to each other.

Going back to the lexicon, and looking up the meaning of 'mixing,' which implies the concepts of both the words 'Spouse' and 'Marriage', we realize that the meaning of “to mix one thing with another” is to gather and mingle them together. Mixing' is gathering, mingling, and consummating.

'To consort,' implied' by the word 'to marriage,' means: to tie and connect, as is seen in the lexicon.

Thus, through lexical understanding of the meanings of 'spouse' and 'marriage' used in religious terms, we come to discover the great human implications contained in the relation between man and woman from Islam's viewpoint: joining, mixing, tying and connecting.

Thus, to Islam, marriage is an interaction, a mixing, a psychological and spiritual connection, and a tying of two individuals (a man and a woman) together to become “a married pair.”

A pair consists of two who are similar to one another. Without this similarity none of us would have found his half to make a pair, but would have remained a single, feeling lonely and away from his spouse, and would have continued his natural search and longing to join his half with the other half that would take him out of the dreary prison of singleness, and fill up the gaps of love, affection and yearning in his inside.

The Glorious Qur'an has beautifully illustrated the love and relation between the couple by drawing a verbal picture, in a wonderful style expressing the human truth implied in this relation:

وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً ۚ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy. Most surely there are signs in this for people who reflect” (Surah Ar-Rum, 30:21).

It has illustrated marriage as a relationship of 'rest,' 'love,' and 'mercy.' By 'rest' it means the security and comfort, which are desired by the individual when he is away from his other half, because he (she) would not enjoy the happiness of affection, love, mercy and sympathy, unless he (she) joins his (her) spouse and get together.

This makes us understand that 'coupling' to the Qur'an, does not refer to a mathematical figure resulting from adding a man to a woman. Actually, it is a process of omitting the singleness – in its psychological and organic meaning, and in its specific and social aim – through the natural meeting and perfection between 'the pair' so that all the psychological and biological connections and feelings may mix, react, communicate, and unite.

In this way the psychological and biological perfection between them and their split personalities is cohesively united, so that they may form the base for the continuation of existence and preservation of the human species. The humanity which grows, fertilizes, and practices its lively activities, is the perfectly natural humanity formed by the uniting ties of a 'pair', as otherwise humanity would disintegrate and would not be able to survive.

هُوَ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَجَعَلَ مِنْهَا زَوْجَهَا لِيَسْكُنَ إِلَيْهَا ۚ فَلَمَّا تَغَشَّاهَا حَمَلَتْ حَمْلًا خَفِيفًا فَمَرَّتْ بِهِ فَلَمَّا أَثْقَلَتْ دَعَوَا اللَّهَ رَبَّهُمَا لَئِنْ آتَيْنَا صَالِحًا لَنَكُونَنَّ مِنَ الشَّاكِرِينَ

“He it is Who did create you from a single being, and of the same (kind) did He make his mate that he might incline to her. So, when he covers her, she bears a light burden, and she moves about with it, but when it becomes heavy, they call upon Allah, their Lord, saying: If you give us a good one we shall be of the grateful ones” (Surah Al-A'raf, 7: 189).

It is, thus, obvious that Islam's advocacy of marriage and the building of the family is a legislative and cultural one, to attain the natural and social aims of the human life.

The one who carefully follows Islam's invitation to marriage, and scrutinizes the relevant texts and concepts, would realize the importance of this human relationship, Islam's great emphasis on it, and its sacredness to human life.

Numerous verses in the Glorious Qur'an deal with this relationship between man and woman and define

the rights and the duties of both the spouses.

There are more than eighty verses which speak of marriage, matrimonial enjoyment, loving and respecting women and having relations with them,

Speaking about marriage, the Qur'an regards it as a general relationship of the creation which runs through the entire universe, and covers everything therein, an atom, a plant, an animal, a human being, etc, since it is a relationship of attraction, yearning and connection between every two parts of a 'pair' in this universe, perfecting its system and keeping it on its right course.

This general and universal system of coupleness is put in nutshell by the Qur'an:

وَمِنْ كُلِّ شَيْءٍ خَلَقْنَا زَوْجَيْنِ لَعَلَّكُمْ تَذَكَّرُونَ

“And of everything We have created pairs, that happily you may reflect” (Surah Ad-Dhariyat, 51:49).

Let every man and woman understand that their relations with their spouses should be based on a universal consciousness, beyond the limits of pleasure and passing instinctive feelings, and reach the depths of the general matrimonial and legal understanding of this relationship as mentioned in the Quran.

If we move from the Qur'an to the Prophets' Traditions, we shall see that they are full of sayings about diverse aspects of marriage, and matrimonial relations, including even what happens between the couple in their privacy and during enjoying moments of sexual intercourse.

Here are some examples concerning marriage and forming a family: The Imam Ja'far As-Sadiq (‘a) quoted The Prophet (S) as follows:

“Marry (yourselves) and marry (your sons and daughters). Fortunate is the Muslim who can afford to pay for an unmarried woman. Nothing is more loved by Allah the Exalted in Islam than a home set up by marriage, and nothing is more hated by Allah the Exalted in Islam than a home pulled down by divorce.”^{[1](#)}

The Imam further explained this by saying, *“Allah the Exalted did emphasize his words about divorce because He strongly hates separation.”^{[2](#)}*

The Commander of the Faithful, the Imam, Ali ibn Abi Talib (‘a), quoted the Messenger of Allah (S) saying:

“Whoever wants to follow my Tradition, then marriage is my Tradition.”^{[3](#)}

The Imam Al-Sadiq ('a) also quoted the Messenger of Allah (S) to have said:

*"The lowest of your deads are the bachelors."*⁴

It is narrated, too:

*"Whoever marries, safeguards half his religion. Let him take care of his duty to the other half."*⁵

It is also narrated from the Imam Al- Sadiq ('a):

"The wife of Uthman ibn Maz'un, a companion of the Prophet came to the Messenger of Allah (S) and said:

*'O Messenger of Allah, Uthman fasts during daytime and stands the nights in prayer.' The Messenger of Allah (S) got angry, and immediately hurried out until he came to where Uthman was praying. On seeing Messenger of Allah (S) he stopped praying. The Messenger of Allah (S) said to him: 'O Uthman, Allah has not sent me with monasticism, but with a simple and merciful monotheistic religion. I fast, pray and touch my wife.⁶ So, whoever likes my nature, let him follow my traditions and to marry is of my Tradition.'*⁷

So, this collection of ideas, concepts, and regulations. found in the Glorious Qur'an and in the prophet's Traditions, enlighten us, with pure clarity, humane values, a sound understanding of marriage, and an invitation to build a family, the nest of happiness, the cradle of love, and the lap of affection which embraces all its members and floods them – husband, wife, children and relatives – with feelings of love and mercy.

This lofty cultural building, the family, is the expression of a natural feeling, an inner longing, and one's innate desire to be sociable, amicable, and taken care of.

Thus, the Messenger of Allah (S) was angry with Uthman because he neglected his wife, and explained to him Islam's attitude, and positively told him that he is against cloistral life which ruins marriage, destroys humanity and contradicts human nature and life's order. That is why we hear the Messenger of Allah (S), on many other occasions, confirm that marriage is of his traditions and the law of his religion, because his divine and tolerant religion is an upright one – that is, far from being abnormal or deviated. It is in perfect harmony with the logic of universal existence and the innate natural order. So, singleness is regarded as an evil, and marriage is regarded as completing half of one's religion, since it regulates the instincts, inclinations, activities, and practices which affect half of the conduct, instinctively, psychologically, socially, economically and morally in general.

In order to accomplish its objectives harmoniously and without contradiction, Islam disapproves the obstacles and barriers forged by a society deviated from the principles of faith. By removing the psychological or social hinderances in the way of building a family and establishing matrimonial relations, it prevents a clash between different social values and the natural law of life. It breaks up class

discrimination, racialism and other differences of ignorance; and changes them into humane values and lawful objective considerations.

It also modifies the customs concerning marriage portion and dowry so that it should not be too overstated and be a materialistic barrier in the way of marriage and forming of families.

Let us read what the Glorious Qur'an says about these practical principles and values in respect to marriage:

وَأَنْكِحُوا الْأَيَامَىٰ مِنْكُمْ وَالصَّالِحِينَ مِنْ عِبَادِكُمْ وَإِمَائِكُمْ ۚ إِنَّ يَكُونُوا فُقَرَاءَ يُغْنِيهِمُ اللَّهُ مِنْ فَضْلِهِ ۚ وَاللَّهُ وَاسِعٌ عَلِيمٌ

“And marry such of you who are single and the pious of your male slaves and female slaves. If they be poor Allah will enrich them of his bounty, Allah is of ample means, Knowing” (Surah An-Nur, 24:32).

وَلَيْسَتَعْتَفِفِ الَّذِينَ لَا يَجِدُونَ نِكَاحًا حَتَّىٰ يُغْنِيَهُمُ اللَّهُ مِنْ فَضْلِهِ ۚ وَالَّذِينَ يَبْتَغُونَ الْكِتَابَ مِمَّا مَلَكَتْ أَيْمَانُكُمْ فَكَاتِبُوهُمْ إِنْ عَلِمْتُمْ فِيهِمْ خَيْرًا ۚ وَآتُوهُمْ مِنْ مَالِ اللَّهِ الَّذِي آتَاكُمْ ۚ وَلَا تَكْرَهُوا فَتْيَانَكُمْ عَلَىٰ الْبِغَاءِ إِنْ أَرَدْنَ تَحَصُّنًا لِّتَبْتَغُوا عَرَضَ الْحَيَاةِ الدُّنْيَا ۚ وَمَنْ يُكْرِهْنَهُنَّ فَإِنَّ اللَّهَ مِنْ بَعْدِ إِكْرَاهِهِنَّ غَفُورٌ رَحِيمٌ

“And let those who do not find means to marry keep chaste till Allah gives them independence by his grace. And such of those who seek a writing (of emancipation) from among those whom your right hand possesses write it for them if you are aware of any good in them, and bestow upon them the wealth of Allah which He has bestowed upon you. Force not your slave girls to whoredom that you may seek enjoyment of the life of the world, if they would preserve their chastity. And if one forces them, then, after their compulsion, surely Allah is Forgiving, Merciful” (Surah An-Nur, 24:33).

ا تَنْكِحُوا الْمُشْرِكَاتِ حَتَّىٰ يُؤْمِنَ ۚ وَلَأَمَةٌ مُّؤْمِنَةٌ خَيْرٌ مِنْ مُّشْرِكَةٍ وَلَوْ أَعْجَبَتْكُمْ ۚ وَلَا تَنْكِحُوا الْمُشْرِكِينَ حَتَّىٰ يُؤْمِنُوا ۚ وَلَعَبْدٌ مُّؤْمِنٌ خَيْرٌ مِنْ مُّشْرِكٍ وَلَوْ أَعْجَبَكُمْ ۚ أُولَٰئِكَ يَدْعُونَ إِلَى النَّارِ ۚ وَاللَّهُ يَدْعُو إِلَى الْجَنَّةِ وَالْمَغْفِرَةِ بِإِذْنِهِ ۚ وَيُبَيِّنُ آيَاتِهِ لِلنَّاسِ لَعَلَّهُمْ يَتَذَكَّرُونَ

“Wed not idolatresses until they believe; and certainly, a believing bondwoman is better than an idolatress even though she should please you; and give not (believing women) in marriage to idolaters until they believe, and certainly a believing slave is better than an idolater even though he should please you. These invite to the Fire, and Allah invites to the Garden, and to forgiveness by His grace, and expounds thus His revelations to mankind that they may be mindful” (Surah Al-Baqara, 2:221).

These verses are explicit in their call for marriage and to abolish class and financial differences and to fight against prostitution and sexual liberties.

In Islam wealth, class, colour or even beauty, should not be an obstacle in the way of marriage. The only criterion is goodness, piety and having good offspring. These are the values and principles of Islam which are derived from its humane spirit and objective look at mankind and at the reality of the social activities and phenomena.

In addition to the Qur'an, the Traditions also play an important role in stressing and confirming these values and concepts:

*"All ibn Asbat wrote to the Imam Muhammad Al-Baqir ibn' Ali ibn Al-Husayn ibn' Ali ibn Abi Talib ('a) complaining that he could not find anyone equal to him in status to marry his daughters. The Imam replied to him and urged him not to look at it that way, as the Messenger of Allah (S) had said: 'If someone of good character and conduct proposes to your daughter, marry them. If you do not, there will be mischief and great corruption on earth.'"*⁸

The Messenger (S) himself gave a practical example by marrying Zayd ibn Haritha – his freed slave – to Zaynab bint Jahsh – the Prophet's cousin, – one of the noblest and most beautiful women. Later on, when Zayd divorced her, the Prophet (S) himself married her.

The Messenger of Allah (S) also married Diya'a bint Al-Zubayr ibn Abd Al-Mutalib of Quraysh – a cousin of the Prophet too – to Al-Miqdad ibn Al-Aswad – who was far below her in nobility and tribal position according to the customs prevalent in those days.

Commenting on this marriage, the Imam Al-Sadiq says *"By marrying Al-Miqdad ibn Al-Aswad to Diya'a bint Al-Zubayr ibn Abd Al-Mutalib, the Messenger of Allah (S) aimed at encouraging people to follow the path of the Messenger of Allah (S) and simplify marriage and to remember that, 'the noblest of you, in the sight of Allah, is the best in conduct.' Al-Zubayr was Abdullah (the prophet's father) and Abu Talib's full brother."*⁹

The Messenger of Allah (S) ordered Ziyad ibn Labid Al-Ansari, a nobleman of Bani Bayada to give his beautiful daughter, Al-Dhalfa' to Juwaybir, the Prophet's poor companion. He used to live on charity, with some other poor, family less persons under a roof built for them by The Messenger (S) called 'Al-Sef-fah.'

The story of Juwaybir starts with a wonderful dialogue between the Messenger of Allah (S) and his respectable companion:

"O Juwaybir," the Prophet said, "how about your getting married, so that your wife may keep you chaste, and help you with your world and hereafter?"

"O Messenger of Allah," replied Juwaybir, "my father and mother be your ransom; who would like me?"

By Allah (I have) no ancestral nobility, no wealth and no beauty, so what woman would want me?"

"O Juwaybir," the Messenger of Allah (S) replied, "Allah, with Islam, lowered him who had been arrogant during the Era of Ignorance (Jahiliyah), made him respectable, with Islam, who had been humiliated during the Era of Ignorance, and abolished, with Islam, superciliousness, and taking pride in tribalism and ancestry. Today all people, irrespective of being white, black, whether of Quraysh, Arabs or non-Arabs, are sons of Adam; whom Allah had created from clay. The most beloved of people to Allah the Exalted, on the Day of Resurrection, are the most pious and obedient to Him."[10](#)

Then he told him to go to Ziyad ibn Labid and, ask for his daughter's hand. When Ziyad heard Juwaybir's proposal, he could not believe it, and turned away Juwaybir at once. But his daughter, Al-Dhafa', protested against her father's haughty attitude towards the Prophet's order. Finally, Ziyad relented, changed his mind, and gave his daughter in marriage to Juwaybir.

These principles and noble values are embodied in the practical lives of the progeny of the Messenger (S), who were Imams of the Muslims and the noblest of the Arabs.

It is narrated that the Imam, Ali ibn Al-Husayn ibn Abi Talib ('a) had a wonderful ideological dialogue with the Ommiad Caliph, Abdul Malik ibn Marwan, who used to oppose the Imam ('a), insult and belittle him.

It is related that Abdul Malik ibn Marwan appointed an agent in Al-Madina to spy upon its people and report the matter. One day the Imam, Ali ibn Al-Husayn emancipated a bondmaid then married her. The spy informed Abdul Malik, who wrote to the Imam saying:

"It has come to me that you have married your bondmaid, while I know there are women in Quraysh who are your equal and would bring glory to you by marriage and would give you worthy sons. But you neither cared for yourself, nor respected your children."

The Imam, Ali ibn Al-Husayn ('a) wrote back to him:

"I received your letter reproaching me for marrying my bondmaid, claiming that there were in Quraysh women who would have brought glory to me if I married them and have their children. But no one is superior to the Messenger of Allah (S) in glory and generosity. She had been of my belongings, I emancipated her from my possessions for a reward I expect for Allah, then I took her back (married) according to His law. Whoever is steadfast in the religion of Allah, nothing will harm him. Allah has, within Islam, raised those who were despised, perfected by it the defects, and removed worthlessness. So, a Muslim cannot be worthless, and worthlessness belongs to the Era of Ignorance."[11](#)

When Abdul Malik read the letter, he was dumbfounded and threw it to his son Sulayman, acknowledging his failure in insulting the Imam ('a).

Sulayman, having read the letter, told his father: "O Commander of the Believers, how boastful, Ali ibn

Al-Husayn is to you!”

Abdul Malik replied, “O Son, do not say so. He is the most elegant of all Bani Hashim who ‘split the rock and drank out of the ocean’ (of Knowledge). Ali ibn Al-Husayn, dear son, gets higher where other people get lower.”¹²

In this way Islam has removed the gravest and most hindering of obstacles which contradicted the human spirit and nature.

Having managed to overcome this social handicap, and to change this backward and ignorant way of thinking, Islam tackled another materialistic problem, whose bad effect was hindering marriages and the establishment of families, that is the problem of high marriage-portions.

Having defined the concept of marriage as a universal and natural system through which man performs the legal ties and connections, Islam looked upon marriage-portion as a secondary thing and placed marriage high above all materialistic benefits and interests. It abolished all concepts which regarded marriage-portion as the woman's price, or as wedding expenses.

Islam regards the mutual consent of both parties, the husband and wife, as two corners of matrimonial relations, the best reason for concluding a marriage¹³ while the marriage-portion is but a gift on which the legal contract is based. It is fixed before concluding the legal contract. Although Islam does not fix any limits, however, it encourages the lowest possible sum acceptable to the bride, even a Dirham or less than it. It also allows marriage portion to be in the form of a service, such as teaching the wife to read and write, or to memorize a Surah of the Glorious Qur'an, or even to teach her a foreign language or a certain profession, etc.

All these are devised to make marriage easy, and to do away with whatever obstacles which stand in the way, like high marriage-portions which in our contemporary society force people to remain single and are a serious hinderance to a marriage.

These obstacles are all due to the resurgence of the backward pre-Islamic concepts about marriage-portion, wedding expenses and gifts for the bride, especially after the high cost of living and low individual incomes.

So, in order to solve these social problems and help the individual build family life easily and orderly, Islam strongly detests and resists the high cost of weddings and extravagance and urges people to reduce the demands of marriage-portion to the lowest possible level.

The Messenger of Allah (S) has said:

“The best women of my people are the most beautiful, but ask the lowest possible ‘mahr’ (marriage-portion).”

It has also been said: *“The blessing of a woman is her modest mahr.”*^{[14](#)}

Also, it is narrated *“... as to woman, her misfortune is in her high 'mahr' and (troublesome) delivery...”*

The marriage of Fatimah (‘a), daughter of the Messenger of Allah (S), was unique regarding her portion. She married the Imam, Ali (‘a) for a modest sum of money ever recorded in history with pride and endearment, despite the fact that she was the daughter of the Messenger of Allah (S), the noblest of the women of the world, and that her father could afford her with a wealth matching that of the women of Caesars and Chosroes. Yet his goal was much more superior and Fatimah's personality and her marriage were much higher above wealth, furniture and the trivialities of this world.

History has preserved this wonderful picture with respect and splendour:

When the Messenger of Allah (S) wanted to marry his daughter to the Imam 'Ali (‘a), he asked him: *“Have you anything to marry with?”*

The Imam replied that except for a sword, an armour and a camel, he had nothing else. It was decided to sell his armour, which the Imam sold for 480 Dirhams and handed the sum to the Prophet (S). The Prophet accepted this modest sum and asked some men and women to purchase garments for the bride, some furniture and other household necessities. ^{[15](#)}

These were as follows:

1. An Egyptian woollen mat.
2. A leather pillow filled with palm fibre.
3. A cloak from Khaybar.
4. A waterskin.
5. Earthenware mugs.
6. Earthenware water jars.
7. A water basin.
8. Thin woollen curtains.
9. A bed with ribbons.
10. A mat from Hajar.
11. A vessel for dyeing.

12. A milk bowl.
13. A shirt.
14. A small waterskin.
15. A sieve.
16. A towel.
17. A stone hand mill.
18. A copper pot.

This modest picture of the new home for the said cost was meant by the Messenger of Allah (S) to be an example of the highest level, personifying the principles practically to be followed in life by Muslims.

How The Building Of The Family Begins?

The family, that important edifice based on legal foundations and humane relations, as well as on natural and instinctive ones, is a serious human building. Islam paved the way to its establishment, through the following basic preparatory and constructive steps:

1. Encouraging and simplifying marriage, as has already been explained.
2. Choosing the spouse. Since this is quite an important matter, and on it are based the lives of the married couple, and the future of their family and children, Islam takes special care and recommends good morals and physical attributes and righteous conduct as a code to be observed by both parties on selecting a spouse. It also draws attention to the unagreeable and detestful characteristics which are to be avoided when choosing a partner.

Thus, Islam asks a man to choose a chaste, affectionate, and pious woman of good character and manners, of a family known for its honour and good conduct, endowed with a respectable personality among her family and relations. Furthermore, Islam does not neglect the aesthetic elements such as beauty and good looks, as well as the masculine physical characteristics desired by women. But it does not give these elements priority over morality and good behaviour. Islam considers these to be of secondary importance and below the attributes necessary to be a good husband and wife.

The Traditions of the Prophet glitter with numerous sayings that throw light on this important aspect of man and woman. Following are some of his sayings dealing with this crucial subject:

“Beware of the green manure!” Asked what a green manure meant, he replied, “A beautiful woman growing up in a bad environment.”^{[16](#)}

“Choose for your seed, as the uncle [wife's brother] is [represented by] one of the two bedfellows.”¹⁷

“Look for goodness in the beautiful faces, as their deeds are apt to be good.”¹⁸

“Marry a pious woman, [or] your hands may be dirtied.”¹⁹

“Marry the virgin the prolific, not the beautiful but barren.”²⁰

“Let me tell you about the worst of your women: The humiliated among her folk, the haughty with her husband, the spiteful barren, the one not refraining from evil, adorning herself during her husband's absence, showing chastity only in his presence, heedless to his words, disobeying his orders, recoiling from him when alone together like an uncontrollable horse in riding, accepting no excuse from him, and forgiving none of his.”²¹

“The best of your women is the prolific, the affectionate, the chaste, the endeared of her family, humble with her husband, adorns herself in his presence, fortifies herself against other than him, listens to his words, and his orders, offers herself to him when alone, but not so unabashed like him.”²²

The Imam Ali ibn Al-Husayn (‘a) said: *“If one of you wants to marry, inquire about the woman's hair, as you inquire about her face, as hair is one of the two beauties.”²³*

Likewise, there are guidelines for the woman about the basic characteristics to be sought for in a husband.

The Imam Muhammad Al-Baqir (‘a), has related from the Prophet:

“The Messenger of Allah (S) said: If a person of good character sends a proposal to your daughter, then marry her to him. If you do not, there will be mischief on earth and wide corruption”²⁴

The Messenger of Allah (S) further said:

“Do not marry a drunkard even if he proposes”²⁵

Once Hussayn ibn Bash-shar Al-Wasati wrote to the Imam 'Ali ibn Musa Al-Ridha (‘a), saying:

“A relative of mine has proposed for my daughter but he is rather ill-tempered. “

The Imam advised him:

“Do not marry to him if he is ill-tempered.”²⁶

The second step towards establishing a family is the constructive one which begins with the conclusion of the marriage contract between a man and a woman. The marriage legally pronounces them husband and wife and is an agreement for lawfully enjoying each other's company.

This contract cannot be concluded without the consent of both the parties, since they are the two props that bring it in existence and give it its value.

It is noteworthy to say that it is the woman, or her agent, who conclude the contract, and not the man. It is she who offers to marry the man, consents, agrees, fixes the 'mahr' that is the amount of money to be paid to the bride and to be mentioned while making the agreement. She may also impose special conditions other than the matrimonial rights granted by the Islamic personal law. This is true of the husband too, provided that these conditions do not contradict any established religious principles.

The marriage agreement is concluded orally, as follows: The woman says to the man: "I marry you against a portion of (the amount is to be stated.)" The man immediately replies: "I accept."

So, when the woman or her agent, pronounce this text of the agreement and the man or his agent accepts it, the agreement or the contract is concluded between the couple, and the matrimonial relations start and what had been forbidden for them before the conclusion of the agreement, becomes lawful for them to do. They are now free to start a family and enjoy married life as the agreement authorizes both parties to build a family. So, marriage is a process of consent and agreement between the wills of man and woman. No marriage and no legal relations can be established between them per force or without their free will and consent, because marriage, in its creative meaning, cannot be accomplished except through psychological and voluntary harmony between the man and the woman.

The Guardian And The Marriage Contract

The Sacred legislation permits the father or the grandfather—representing the father – to marry his minor son or daughter (below the age of puberty) and this agreement is regarded valid, unless it is harmful and disadvantageous to either the boy or the girl, in which case when they come of age, they are free either to accept the marriage conducted by their guardians or reject it.

Concerning a grown-up woman who has legally come of age, if she is divorced or widowed, her father and grandfather have no authority upon her. She is the one to choose her spouse according to her free will. But as regards the virgin, the jurists have different opinions about the role of the father or the grandfather, in conducting her marriage. They back their opinions with suitable Traditions and Sayings of the prophet (S.A). On studying these opinions, we find them fall into three categories:

1. Some say that the father (or the grandfather or their agents) has the right to use his authority over his virgin daughter in respect to her marriage. Accordingly, the guardian of the grown-up virgin the right to marry her to a suitable man even without her consent. They say that such a marriage is legal and valid, and she cannot reject it. But if he selects an inefficient man, or he cares only for his own selfish interests resulting from such a marriage, it is considered illegal and she has the right to reject it.

2. Another group of jurists suggest that the consent of both the father or the grandfather or their

agents and the daughter is necessary. They maintain that the father cannot marry his daughter without her consent and similarly she cannot accept a marriage proposal without her father's consent. Neither of them has the right to act unilaterally; as the lawfulness of this procedure depends on their unanimous consent, provided the guardian would not choose an unsuitable husband; but if he did and insisted on his choice, his consent will no longer be considered necessary, and she is free to marry herself, disregarding her guardian's consent.

3. A third group of jurists say that a grown-up virgin who has come of age cannot be subjected to the authority of her father, grandfather or their agents, and they have no right to marry her forcibly according to their choice, and, at the same time, she is not obliged to ask for their consent to marry. It is only she herself who can select her spouse. This group regards marriage to be a contract just as any other contract. They maintain that since the grown-up woman has the right to conclude contracts or transactions like buying, selling, possessing, donating, etc., and nobody can prevent her from doing so, or even take part in the making of her decisions, similarly she can act the same in respect to marriage. They back their opinion with a number of Traditions and Sayings of the Prophet (S) which are stated in their arguments.

By analysing these arguments, we understand that none of the jurists deny the virgin from exercising her will or harming her. On the contrary, they try to protect her against any act of rashness caused by her naive youth and tender adolescence or driving desires, and prevent her from falling a prey to the seduction of men and their carnal desires, which may turn her into means of pleasure and exploitation. That is why these jurists insist on the father's consent or leave the matter to him, provided his decision does not bring her any harm, in which case they demand that she herself should be mature enough and be capable of understanding such affairs.

However, the most important thing is that the woman has to obey the instructions of the 'Mujtahid' (the authority on Divine Law) in this regard, of whom she is a follower and not of anyone else.

Thus, Islam establishes an orderly family on exact moral and legal foundations, based on a strong and lasting construction so that the family, through sound married life, may play its great human role in the society.

- [1.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 328.
- [2.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 328.
- [3.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 32.
- [4.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 32.
- [5.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 32.
- [6.](#) Touch my wife = have sexual intercourse with her.
- [7.](#) Al-Kulayni, "Furu Al-Kafi," Vol. 5. p. 494.
- [8.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 347.
- [9.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 344.
- [10.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 341.
- [11.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 344–345.

[12.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 344–345.

[13.](#) 'Marriage-portion' is the amount of money agreed upon on concluding the marriage contract to be given to the bride.

[14.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a," 4th ed., p. 78–

[15.](#) It is said that Fatimah's ('a) portion was 500 Dirhams, as Ali ('a) himself had said in his speech about his marriage: "... and the Messenger of Allah (S) married me to his daughter Fatimah for 500 Dirhams. So, ask him and be witness..." Sayid Muhsin Al-Amin, "Al Majalis Al-Saniya", Vol. 2., Sec 5., p. 74–75, 6th ed.

[16.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p. 29.

[17.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p. 28. This refers to the hereditary qualities transferable from one family to another.

- Before choosing a wife one should give consideration to the habits (good or bad) of her brother in particular and her family in general for surely the children will inherit some of their traits.

How wonderful Islam has solved this problem before 1400 years. What modern science and medical research is doing, is only confirmation of the Universal and timeless laws of Islam.

[18.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p.37.

[19.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p.30. That is, you may be a loser.

[20.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p.33.

[21.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7 p. 18.

[22.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7p. 14.

[23.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7p.37.

[24.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7p.51.

[25.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7p.51.

[26.](#) Al-Hurr Al-Amili, "Wasa'il Al-Shi'a, Vol 7p.54.

Organizing Family Relations

The major task undertaken by Islam is the organization of the human life and its protection against disintegration and disorder by rational laws, values, and morals.

In Islam the family is the keystone of the social building and organizes, controls, and supports the order of society; and it is also the starting point for the psychological and moral guidance of the society. So, Islam concentrates on the orderly organization of the family by laying the legal and moral bases necessary for systematizing the life within its limits and describes every psychological and instinctive element that is required. Therefore, it defines the following basic rights as the firm foundation of a family.

1. The rights of a wife upon her husband.
2. The rights of husband upon his wife.
3. The rights of children upon their parents.
4. The rights of parents upon their children.
5. Inheritance.

The Rights Of A Wife Upon Her Husband

In order to establish the relationship between wife and husband on a sound and explicit base in accordance with a clear and defined religious principle, the Qur'an says:

...وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَّ بِالْمَعْرُوفِ...

“...And they [women] have rights similar of those [of men] over them in a just manner...” (Surah Al-Baqara, 2:228).

Through this wonderful legal relationship, Islam builds the connection between the couple on the basis of an exact and just equation. The woman has her legal rights upon her husband, as also the man has legal rights upon her. In short, Islam has imposed certain rights upon both husband and wife.

Studying the marital relations in Islam we realise that Islamic laws advocating marital bonds between man and wife are based on affection, mercy, kindness and good treatment towards each other and consider the marriage contract a sacred covenant.

How wonderfully the Imam Ja'far ibn Muhammad Al-Sadiq (‘a), refers to this sacred contract! He says:

“When one of you wants to marry a woman, let him say to her: ‘I accept the covenant taken by Allah’...And then (a woman) must be retained in honour or released in kindness...”¹

The religious texts and concepts define the rights of the wife upon her husband as follows:

A. Maintenance

The Wife has the right of being properly maintained by her husband and he is responsible for providing his wife with food, clothes, residence, medical treatment, adornment (as per his means) and other expenditures needed by the wife and becoming her social status, on one hand, and falling within the husband's financial means, on the other.

Allah the Exalted says:

أَسْكِنُوهُنَّ مِنْ حَيْثُ سَكَنْتُمْ مِنْ وُجْدِكُمْ وَلَا تَضَارُّوهُنَّ لِيُضَيِّقُوا عَلَيْهِنَّ ۚ وَإِنْ كُنَّ أُولَاتٍ حَمْلٍ فَأَنْفِقُوا عَلَيْهِنَّ حَتَّى يَضَعْنَ حَمْلَهُنَّ ۚ فَإِنْ أَرْضَعْنَ لَكُمْ فَآتُوهُنَّ أُجُورَهُنَّ ۚ وَاتَّمِرُوا بَيْنَكُمْ بِالْمَعْرُوفِ ۚ وَإِنْ تَعَاسَرْتُمْ فَسْتَزْضِعْ لَهُ أُخْرَى

“Lodge them where you dwell, according to your means, and harass them not so as to straiten life for them. And if they are pregnant, then spend for them till they bring forth their burden.² Then, if they give suckle for you, give them their due payment and enjoin one another among you to do

good; but if you disagree, then let other [women] suckle for him” (Surah At-Talaq 65:6).

لِيُنْفِقْ ذُو سَعَةٍ مِّنْ سَعَتِهِ ۖ وَمَن قُدِرَ عَلَيْهِ رِزْقُهُ فَلْيُنْفِقْ مِمَّا آتَاهُ اللَّهُ ۚ لَا يُكَلِّفُ اللَّهُ نَفْسًا إِلَّا مَا آتَاهَا ۚ سَيَجْعَلُ اللَّهُ
بَعْدَ عُسْرٍ يُسْرًا

Let him who has abundance spend of his abundance, and he whose provision is measured, let him spend of that which Allah has given him; Allah does not lay a burden on any soul, expect that which He has given it. Allah will bring ease after hardship” (Surah At-Talaq 65:7).

B. Good Treatment

The following verses of the Qur'an explain the sharing of affection, love, confidence, and respect with her.

...وَعَاشِرُوهُنَّ بِالْمَعْرُوفِ...

“... And treat them [women] kindly ...” (Surah An-Nisa’, 4: 19).

فَإِمْسَاكُ بِمَعْرُوفٍ أَوْ تَسْرِيحٌ بِإِحْسَانٍ

“...And then (a woman) must be retained in honour or released in kindness...” (Surah Al-Baqara, 2:229).

ۚ وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُم مِّنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُم مَّوَدَّةَ وَرَحْمَةً ۚ

“And of his signs is this: He created mates for you from yourselves that you might find rest in them, and He ordained between you love and mercy” (Surah Ar-Rum, 30:21).

The Messenger (S) said:

“Verily the best of you is the best to his women; and I am the best of you to my women.”³

He also said:

“May Allah bless the man who does good between himself and his wife; as Allah the Exalted has given him authority over her and made him her guardian.”⁴

Family life is the fountain of happiness and the source of love and affection. In the warmth of the home man finds his comfort and stability, and near his wife he feels pleased and secured.

The more affectionate the relations, the better the companionship between the couple and the deeper the feeling of peace, security, and comfort in the souls of husband, wife and the children.

How exact is the Prophet (S) when he says: *"A man's words to his wife: 'I love you' would never go out of her heart."*[5](#)

Islam enhances good companionship with the wife, fulfilling her psychological and aesthetic inclinations and satisfying her sexual and instinctive desires so that all their marital dimensions may rub against each other.

It insists even further than that. Islam asks the husband to resort to every means and method that cause his wife to love him, physically, spiritually, and instinctively, tying her tightly to him. Islam urges man to be keen on keeping himself good-looking and attractive to her, responding to her sexual desire, starting with foreplay for excitement so that he may reach climax with her simultaneously, as she is a matching partner to him in enjoying sexual pleasures. She is not a mere means for satisfying man's desire. A Tradition says:

"All the believers' diversions are futile, except in three instances: in training his horse, in using his bow and arrows and in paying court to his wife, as (only) these are true."[6](#)

"When one wants to have sexual intercourse with his wife, one may not hasten her, as women too, have their desires."[7](#)

"Three acts are considered to be rude: to accompany somebody without asking his full name; to refuse an invitation to a meal, or to accept it but refuse to eat; and to start sexual intercourse with the wife before foreplaying."[8](#)

It is related that *The Messenger of Allah (S) on entering the house of Umm Salama, smelled a strong perfume.*

He asked: "Is Al-Hawla' here?"

Umm Salama replied: "Yes, she is here complaining about her husband."

Al-Hawla' came out and told the Prophet: "My husband neglects me."

He said: "Give him more, Hawla'."

She answered: "I leave no perfume without using it, but he still disregards me."

He remarked: "If only he would know what he would get by approaching you!"

She asked: "What would he get by approaching me?"

The Prophet replied: “If he approached you, two angels would escort him, and he would be like a man drawing his sword to fight for the cause of Allah. Then by having sexual intercourse, his sins would fall off him like leaves from a tree and when he takes the bath, his sins would wash off him.” [9](#)

Al-Hasan ibn Al-Jahm narrates that *he saw the Imam Al-Rida (‘a) with his beard dyed. So, I asked him: “May I be your sacrifice, I see you have dyed.” The Imam said. “Yes, embellishment increases the chastity of women. They abandon chastity when their husbands abandon embellishment.” Then he continued, “Would you like to see her as she would see you, without adorning herself?” Ibn Al-Jahm replied in the negative. The Imam replied, “that is it. The habit of the prophets is to be clean, to use perfumes, to trim the hair and to frequent their wives.”* [10](#)

By the above quotations regarding rights of the wife upon her husband we can illustrate a clear picture of leading a good marital life and fulfil all aspects of the material, moral, instinctive and aesthetic relations between husband and wife.

The Rights Of A Husband Upon His Wife

To complete the equation between man and woman, Islam grants the husband certain well-defined rights upon his wife. (These are, however, less expensive, and narrower in scope than her rights upon him.)

By analysing the Qur'an and the Prophet's Traditions we discover the basic rights granted by Islam to the husband upon the wife – rights that are explicitly and exactly defined:

الرِّجَالُ قَوَّامُونَ عَلَى النِّسَاءِ بِمَا فَضَّلَ اللَّهُ بَعْضَهُمْ عَلَى بَعْضٍ وَبِمَا أَنْفَقُوا مِنْ أَمْوَالِهِمْ

“Men are the maintainers of women, because Allah has made some of them to excel others, and because they spend out of their property [for the support of women]” (Surah An-Nisa’, 4:34).

According to a narration, a woman came to the Prophet (S) and asked him: “O Messenger of Allah, tell me what right has the husband upon the wife?” *He said: “A lot.” She said: “Explain me some of them.” He replied, “She may not fast without his permission, [11](#) nor may she go out of her house without his consent. She has to use the best of perfumes, to wear the best of her clothes, to adorn herself as best as she can, to offer herself to him day and night, and still his rights are more than that.”* [12](#)

For a better explanation, the husband's rights upon his wife can be classified as follows:

A. Protecting His Home, Wealth, And Children

The husband should make the necessary arrangements for the household and the family, otherwise the

wife is not responsible for housekeeping, cooking, cleaning etc.

It is not compulsory for her to suckle her children, attend them or nurse them. Yes, Islam renders these affectionate acts for the woman and considers them good deeds and a way of approaching Allah, unless such responsibilities are stated by the husband in the conditions of the marriage agreement.

A Tradition concerning man's right upon his wife, says: *"No Muslim got a better benefit from Islam than a Muslim wife who pleases her husband, obeys his orders and protects his honour and his property during his absence."*¹³

We also read about a wonderful arbitration conducted by the Messenger of Allah (S) between the Commander of the Believers, 'Ali ibn Abi Talib ('a) and his wife, Fatimah, the daughter of the Prophet (S). The Imam Al-Sadiq ('a) narrates: *"Ali and Fatimah came to the Messenger of Allah (S) for arbitration concerning housework. The Prophet (S) decided that all household work should be done by Fatimah, and all the works outside the house were to be done by 'Ali (S). Fatimah later said: 'None but Allah knows how much pleased I was with this judgement of the Messenger of Allah (S) which spared me a man's job.'"*¹⁴

B. Obedience And Authority

The family is an important social unit whose orderly construction depends on sound discipline and efficient organizing. As there should be someone entrusted to shoulder responsibility over his beloved family and undertake the task of guidance and leadership within its prescribed limits, Islam has therefore, authorised the husband to be obeyed and given him the upper hand over his wife and children, until they come of age. This authority, however, is under the condition that he may not issue orders contradicting the commands of religion and its principles. If he orders his family to commit a sinful act, his right will lapse and he should not be obeyed. A Tradition says:

"No creature is to be obeyed in disobeying the Creator."

The following quotation from the Qur'an confirms the rights of a husband:

الرِّجَالُ قَوَّامُونَ عَلَى النِّسَاءِ بِمَا فَضَّلَ اللَّهُ بَعْضَهُمْ عَلَى بَعْضٍ وَبِمَا أَنْفَقُوا مِنْ أَمْوَالِهِمْ

"Men are the maintainers of women, because Allah has made some of them to excel others, and because they spend out of their property [for the support of women]" (Surah An-Nisa', 4:34).

A Tradition of the Messenger of Allah (S) says: *"She may not go out of her house without his consent and should obey his orders."*

C. Good Behaviour

In order to provide an atmosphere of love and stability for her husband and her children, she is to do away with all causes of unrest, disgust and whatever may disturb the peace of the family. This can be achieved by showing affection and amity to the husband and by infusing the home atmosphere with feelings of love, joy and kindness. Man may not see in his wife, nor hear from her, what he hates to see and hear. The more the sense of beauty grows in one's self, the more one's need for love and affection is satisfied and the less the causes of trouble, boredom, frustration, bitterness and hatred, etc. Thus, such a harmonious family life full of love, joy and affection would certainly have its effects on the behaviour of its members, and on their relations with the society, especially the children, who grow up in the arms of such a loving atmosphere, contrary to a miserable and unhappy family, where the husband leads a life of hatred, tension, repulsion and ill – temper, thereby bringing ruin to the family. Such environments badly affect the children, causing them to be complex and miserable, or even pushing them to be aggressive, irresponsible and lead a vagabond life.

Islam urges the mother to be the source of love, beauty, peace and security in the house and advises her to endeavour to create a tightly knit family life full of harmony and affection.

A man said to the Messenger of Allah (S): “I have a wife who welcomes me at the door when I enter the house and sees me off when I leave. When she sees me grieved, she asks me: ‘What are you grieved for? If you are anxious about your livelihood, it is guaranteed by other than you; or if you are worried about your hereafter life, may Allah increase your worries.’” The Messenger of Allah (S) said: “Allah has agents and she is one of them. She will get half a martyr’s reward.”¹⁵

According to Jabir ibn 'Abdallah Al- Ansari: *Once the Prophet (S) said: “The best of your women is the prolific, the affectionate, the chaste, the endeared of her family, the humble to her husband, fortified against other than him, listens to what he says, and obeys his orders, offers herself to him when alone, but not in an unabashed manner like his.”*

D. Pleasing The Husband

The wife should pay proper attention to her make – up and appearance, to attract the husband and respond to his sexual inclinations, since this is quite effective in pulling the man to his wife and strengthening the relations of love between them, she should provide him with ways of enjoying her beauty and satisfy his desires and prevent him the temptation of throwing himself into the traps of forbidden desires.

The Imam Al-Sadiq (‘a) relates that a woman who came to the Messenger of Allah (S) was asked by him whether she was a 'put – off woman?' She asked the meaning of that, and the Prophet replied: *“She is the woman who, when her husband calls her for some need,¹⁶ keeps putting it off until he falls asleep. Such a woman will, then, continuously be cursed by the angels until her husband wakes up.”¹⁷*

The Qur'an briefly states the right of enjoying one's wife, by saying:

نِسَاؤُكُمْ حَرْثٌ لَّكُمْ فَأَتُوا حَرْثَكُمْ أَنَّى شِئْتُمْ ۖ وَقَدِّمُوا لِنَفْسِكُمْ ۚ وَاتَّقُوا اللَّهَ وَأَعْلَمُوا أَنَّكُمْ مُلَاقُوهُ ۚ وَبَشِّرِ الْمُؤْمِنِينَ

“Your women are tilth for you [to cultivate] so go to your tilth when you like and do good beforehand for yourselves and be careful [of your duty] to Allah, and know that you will [one day] meet Him. Give glad tidings to believers [O Muhammad]” (Surah Al-Baqara, 2:223).

According to the above verse, the Qur'an confirms man's right to enjoy his wife in diverse ways, as she, too, has the right to enjoy this relationship.

The moral and legislative note of the above verse regarding this lawfulness is evident by the ideal advice of the Qur'an:

وَقَدِّمُوا لِنَفْسِكُمْ ۚ وَاتَّقُوا اللَّهَ وَأَعْلَمُوا أَنَّكُمْ مُلَاقُوهُ ۚ وَبَشِّرِ الْمُؤْمِنِينَ

“...and do good beforehand for yourselves and be careful [of your duty] to Allah, and know that you will [one day] meet Him. Give glad tidings to believers [O Muhammad]” (Surah Al-Baqara, 2:223).

These pieces of advice concerning man, woman and the sexual relations prove the fact how intelligently Islam has devised ways for both husband and wife to enjoy themselves according to their respective rights, so that there can be neither oppression, nor exploitation of the woman as a result of man's extravagance or misuse.

Islam, which encourages the woman to pay attention to her beauty, appearance, and adornment for her husband and to show affection to him, at the same time prohibits her from doing the same for any other man than him, because it would create psychological separation between the couple and drive the woman to deviation, shamelessness and faithlessness, besides creating tension, mistrust and hatred in her husband's heart, and finally destroying the noble edifice called family.

Hence a Tradition says: *“If a woman angers her husband unjustly and sleeps, Allah would not accept her prayers until the husband is content with her; and if a woman uses perfume for or than her husband, Allah will not accept her prayer until she washes it away as she washes pollution from herself.”*

The Rights Of Children Upon Their Parents

Children are the fruits of marital relations. They are the adornment of the house, the beauty of the family, and the seeds guaranteeing the continuation of life. That is why Allah has made maternal affection the strongest of all other living instincts. Childbirth is linked to the desire to survive and be eternal and

children represent the continuation of the parents' survival in life.

Islam expresses and interprets these and innate human feelings through its laws and legislations, regulating marriage, parental relations, and responsibilities, defining the parents' relations with their children and designing the rights and duties of each member in proportion to his role in the family.

A. The father is responsible for providing sustenance for his children as well as meeting their other needs as long as they are below adulthood and even after it, should they be unable to earn their own livelihood due to reasons accepted by Islamic law, such as illness, disability, and the like.

In this way this relationship and the principle of reciprocal undertakings continue. These relations have material and moral dimensions effective in the construction of the family and the society and in strengthening the ties among the members of the family. So, the father is the one who is responsible for arrangements to bring up, nurse, suck and attend his children during their childhood. The mother is exempted from this task. Islam gives the mother the right to be paid for giving suck to her children and for nursing and bringing them up, as the mother is not responsible for that. But she is responsible for proper care and guidance for her children and to bring them up as best as she can, since her role at home is that of a teacher, educator, and guide.

But if she volunteers to take care of her children, give them the suck, nurse them, etc., it will be a deed Allah likes to see, and rewards her for it. Actually, Islam encourages her to do so but without any compulsion or obligation.

B. The second right of the children upon their father is the latter's duty in bringing them up with proper guidance and treating them with the spirit of love and affection.

Naturally a child needs paternal care, love, and affection, much as it needs milk, medicine, clothes, etc. The following Traditions urge love and affection towards children:

"Love children and have mercy on them. When you promise them, keep it, as they think it is you who support them." [18](#)

"Whoever kisses his child, Allah the Exalted writes for him a reward; whoever pleases his child, Allah will please him on the Resurrection Day; and whoever teaches his child (how to read) the Qur'an, he, and the mother (of his child) will be dressed in the hereafter in suits whose illumination will light the faces of the dwellers of paradise." [19](#)

"Allah will have mercy on the man who passionately loves his child." [20](#)

It has scientifically been confirmed that children who live in an environment of love, affection, and parental care, grow up free from any complexities, psychopathics and symptoms of weak personality. Science has also proved that harmonious parental relations have positive effects on the behaviour of the children and on their relations with the others, in childhood, adolescence and adulthood. On the contrary,

the child who lacks affectionate treatment and grows up in an atmosphere of hatred, spite and negligence, acquires a loose and weak personality, irresponsible and aggressive behaviour, and suffers from inferiority complex.

Consequently, Islam lays stress on the responsibility of fathers in bringing up the children with proper guidance. It says:

يَا أَيُّهَا الَّذِينَ آمَنُوا قُوا أَنْفُسَكُمْ وَأَهْلِيكُمْ نَارًا وَقُودُهَا النَّاسُ وَالْحِجَارَةُ عَلَيْهَا مَلَائِكَةٌ غِلَظُ شِدَادٍ لَا يَعْصُونَ اللَّهَ مَا أَمَرَهُمْ وَيَفْعَلُونَ مَا يُؤْمَرُونَ

“O you who believe! Save yourselves and your families from a fire whose fuel is mean and stones, over which are set angels strong and severe, who do not disobey Allah in what He commands them but do as they are commanded” (Surah At-Tahrim, 66:6).

A man came to the Messenger of Allah and asked him: “What right has this son of mine upon me?” The Prophet replied: “Give him a good name and a good education and place him in a good position.” [21](#)

Thus, it is the responsibility of the father to guide his children and educate them so that they can lead a righteous life. Islam entrusts the father or the consanguineous grandfather, authority, and control over the children. At the same time, it holds him responsible for his children's behaviour to the rights of others in society.

The Rights Of Parents Upon Their Children

وَوَصَّيْنَا الْإِنْسَانَ بِوَالِدَيْهِ حَمَلَتْهُ أُمُّهُ وَهْنًا عَلَى وَهْنٍ وَفِصَالُهُ فِي عَامَيْنِ أَنِ اشْكُرْ لِي وَلِوَالِدَيْكَ إِلَيَّ الْمَصِيرُ

“And We have enjoined man concerning his parents – His mother bears him in weakness upon weakness, and his weaning takes two years – Be grateful to Me and to your parents. To Me is the eventual coming” (Surah Luqman 31: 14).

“Your Lord has decreed that you worship none save Him, and (you show) kindness to your parents. If one of them or both of them reach old age with you, say not ‘Fie’ to them nor repulse them, but speak to them a generous word” (Surah Al-Isra’ or Bani Isra’il, 17:23).

وَاخْفِضْ لَهُمَا جَنَاحَ الذُّلِّ مِنَ الرَّحْمَةِ وَقُلْ رَبِّ ارْحَمْهُمَا كَمَا رَبَّيَانِي صَغِيرًا

“And make yourself submissively gentle with compassion and say: O Lord! Have mercy on them both as they did for me (when I was) little” (Surah Al-Isra’ or Bani Isra’il, 17:24).

Islam does not grant such great attention and respect to any others except the parents, nor is anybody else granted rights similar to those of the parents upon their children.

Allah states their rights next to His upon man. As He commands man to acknowledge Allah's generosity and to thank and worship Him, likewise he commands man to thank his parents, obey them, show kindness to them, have mercy on them and be humble to them, as they are the means of man's existence and the source of life. The mother had borne him in her womb, nourished him with all her heart and love, tenderly whispered lullabies in his ears day and night, deprived herself from comfortable sleep in order to attend him, throughout her life surrounded him with feelings of love and care. She regards him as her soul and her heart beating in another body. So naturally she deserves to be treated with kindness.

Is there anyone more deserving than her?

There is a Tradition which says: *"Paradise lies at the feet of the mother."*

How expressive was the Prophet's answer to a man who came to him and asked: *"O Messenger of Allah! Whom should I be more dutiful to? The Prophet (S) replied: "To your mother." The man asked: "Then to whom?" He replied: "To your mother." Once again, the man asked: "Then to whom?" The Prophet (S) said: "To your father."*[22](#)

The respect of the mother does not mean that Islam has neglected the father. In fact, both the parents are to be obeyed and respected by the children.

A Tradition says: *"Allah's pleasure is in father's pleasure and Allah's displeasure is in father's displeasure."*

The father is the beloved up bringer, the sustainer, the spender, and the one who exerts his efforts and bears hardships to provide for his children a happy and comfortable life. He sees his children as an extension of his own existence and an extension of his life after his death.

The letter which the Imam Ali ('a) sent to his son, the Imam Hasan, is an example for all fathers who believe in Ali's noble principles and endeavour to follow his lofty ideas:

"My dear son, you are a part of my body and soul and whenever I look at you, I feel as if I am looking at myself. If any calamity happens to you, I feel as if it has befallen me. Your death will make me feel as if it was my own death. Your affairs are to me like my own affairs..."[23](#)

So, if these humane feelings and noble aspirations are showered by the fathers on their children, then the logic of morals and the conduct of conscience dictate to the children to respect their fathers and be kind and thankful towards them, since the children's offers, and feelings are too meagre to match those of their fathers. Therefore, the sons' duty is to be kind, thankful and grateful, as an acknowledgement and an attempt to feel content, never as a complete and full compensation, nor even a quittance.

In order that the paternal rights may not be mere moral advice or recommendations, Islam has defined these rights as legal duties and obligatory legislations, imposed on the sons, and warns them of severe punishment for neglecting to carry them out. The sons must take care of their fathers when aged and in need. They have also to sustain them if they are incapable of working. In case of any deviation on the part of the son the Judiciary has the right to force the son to obey. Islam regards negligence towards one's parents a capital sin and prohibits even the slightest sign of such disobedience; even the utterance of such an expression as "fie," let alone showing the signs of hatred towards them.

A Tradition says: *"The least disobedience is to say 'fie' [to the parents]. Had Allah known anything less than that, He would have forbidden it."* [24](#)

"Whoever looks at his parents with aversion, even if they have wronged him, Allah would accept none of his prayers." [25](#)

Thus, Islam enjoins the sons to be kind to their parents, even if the latter wrong them. So, it keeps on emphasizing the necessity of being kind and lenient to the parents that it regards a look of love and mercy at the parents a kind of worship to Allah, as is evident from the following Tradition:

"Any affectionate look by a son towards his parents is servitude to Allah."

This is encouraged not only during their lifetime, but this heartfelt and deep human relation of the sons to their parents is to continue even after their death, as a dead father is more in need of kindness than a living one. Life is the world of events and human activities, where man can manage his own affairs, or seek the help of others to accomplish or solve them. But a dead man can do nothing:

هَلَاكَ عَنِّي سُلْطَانِيَّةٌ

***"My power has gone from me."* (Surah Al-Haqqah, 69:29).**

وَحِيلَ بَيْنَهُمْ وَبَيْنَ مَا يَشْتَهُونَ

***"And a barrier is set between them and that which they desire..."* (Surah Saba, 34:54).**

فَلَا يَسْتَطِيعُونَ تَوْصِيَةً وَلَا إِلَىٰ أَهْلِهِمْ يَرْجِعُونَ

***"They cannot make bequest, nor can they return to their own families."* (Surah Yasin, 36:50).**

Therefore, a dead man is cut off from this world except for the causal relations created during his life.

Good deeds done during his lifetime are the only assets in the hereafter. So, he needs a virtuous

existence here, enriching and growing it with means of goodness, since his fate in the hereafter depends on what he has done in this world.

He cannot go back, but he is still in need of help to set his misdeeds aright. So, who can help him? Who can make up for the man's misdeeds in this world to which he cannot return? The Traditions of the Prophet (S) answer these questions. They point out the extension that the man has left behind and which continues even after his death. This extension is part of him, a good harvest of the seeds he had sowed.

The Prophet (S) said: "When a man dies, his acts stop, except for three: (In leaving) a running charity, a benefitting knowledge (for mankind) and a virtuous son who prays for him."

Thus, as the Prophet (S) says, kindness towards parents does not stop at their death but should continue even after.

A Bedouin once asked the Prophet (S): *"O Messenger of Allah! Is there any more kindness that I can do for my parents?"* He answered: *"Yes, pray and ask forgiveness for them, pay their debts which were left unpaid, keep the kinship bonds which may not be kept without them and honour their friends."*

Therefore, sons have to be kind to their parents, do good to them, pay their debts, perform their obligatory duties which they could not do during their lives, such as prayers, fasting and pilgrimage, and continually ask Allah to forgive them.

These are the rights of parents upon their sons, as are clear from the following Tradition:

"If a man is obedient and kind to his parents during their lives, but when they die neither he pays their debts nor he asks forgiveness for them, Allah would register him as disobedient. And likewise, if a son who is neither kind nor dutiful towards his parents but after their death, he pays their debts and asks forgiveness for them, Allah the Exalted would register him as an obedient son!" [26](#)

So, Islam enjoins the eldest son to compensate for the prayers which his father could not perform during his life, in case the father had not paid somebody else to do so.

Furthermore, the heirs are to pay for the deceased's pending Hajj pilgrimage, fasting and debts, as well as to recompensate those who had been wronged by him, all out of his legacy before dividing it among the heirs.

Doubts

Inheritance

Concerning inheritance, we wish to clarify an often-repeated accusation by the enemies of Islam in respect to the woman's share of a legacy.

It is common among the orientalists and their followers, as well as those who harbour ill will against Islam, that this religion has wronged the female and treated her unjustly by allotting her only half of what is allotted to the male heir.

As a matter of fact, Islam does not allot the female half of what is allotted to the male in all cases as a general rule, except for a few. In certain instances, the female takes half of what the male takes:

... يُوصِيكُمُ اللَّهُ فِي أَوْلَادِكُمْ لِلذَّكَرِ مِثْلُ حَظِّ الْأُنثِيَيْنِ ﴿٤﴾

“Allah charges you concerning your children: the male shall have the equivalent of the portion of two females ...” (Surah An-Nisa', 4: 11).

In some other instances she gets the equivalent of a male's portion:

وَإِنْ كَانَتْ وَاحِدَةً فَلَهَا النِّصْفُ ﴿٥﴾ وَلِأَبَوَيْهِ لِكُلِّ وَاحِدٍ مِّنْهُمَا السُّدُسُ مِمَّا تَرَكَ إِنْ كَانَ لَهُ وَلَدٌ

“...and if there is one (only) she shall have the half. And for his (the deceased's) parents each of them shall have a sixth of the inheritance if he has a son...” (Surah An-Nisa', 4: 11).

Here we read that a sixth is to be paid to each of his father and mother. Thus, they both, a male, and a female, receive equal portions.

Yet, in some other instances, the female gets even more than a male's portion, such as when a deceased leaves a girl and one of his parents. In this case the parent takes one-fourth, and the girl receives the other three-fourths.

It is evident in this case that the grandfather or grandmother gets one-fourth, while the daughter gets three-fourths.

Therefore, the distribution of inheritance in Islam does not belittle the right of the woman whatsoever.

Furthermore, if we analyse the facts, we realize that the reason for a less portion of a legacy for a female is not because she is a female. The legacy wisely takes into consideration the natural laws, social justice, the degree of the relatives to the deceased, their number, etc. Otherwise, how can we explain the equality of the male and the female in certain cases, and even a larger portion for the female – up to three-fourth of the whole legacy – in some other cases?

Polygamy

وَإِنْ خِفْتُمْ أَلَّا تُقْسِطُوا فِي الْيَتَامَىٰ فَانكِحُوا مَا طَابَ لَكُمْ مِنَ النِّسَاءِ مَثَلَىٰ ثَلَاثَ وَرُبَاعَ ﴿٤﴾ فَإِنْ خِفْتُمْ أَلَّا تَعْدِلُوا فَوَاحِدَةً

أَوْ مَا مَلَكَتْ أَيْمَانُكُمْ ۚ ذَٰلِكَ أَدْنَىٰ أَلَّا تَعُولُوا

“And if you fear that you cannot act fairly towards the orphans, then marry such women, who seem good to you, two three or four; and if you fear that you cannot do justice (between them) then (marry) only one or that your right hands possess; this is more proper that you may not deviate from the right course.” (Surah An-Nisa', 4:3).

وَلَنْ تَسْتَطِيعُوا أَنْ تَعْدِلُوا بَيْنَ النِّسَاءِ وَلَوْ حَرَصْتُمْ ۚ فَلَا تَمِيلُوا كُلَّ الْمِيلِ فَتَدْرُوهَا كَالْمُعَلَّقَةِ ۚ وَإِنْ تُصْلِحُوا وَتَتَّقُوا فَإِنَّ اللَّهَ كَانَ غَفُورًا رَحِيمًا

“And you will not be able to deal equally between (your) wives, however much you wish (to do so). But turn not altogether away (from one), leaving her in suspense.²⁷ If you do good and keep away from evil, surely! Allah is ever Forgiving, Merciful.” (Surah An-Nisa', 4: 129).

By throwing a scrutinizing look at the history of human ignorance, – past and present – and by trying to picture the human personality under these periods of ignorance, in respect to their ideas, inclinations, psychological directions, and behaviour, we are apt to observe that the man of these ignorant cultures takes an attitude of antagonism, enmity, opposition and obstinacy towards the Divine Religion, driven by his carnal desires and whims on one hand, and by his ignorance and arrogance, on the other. He is always trying to affront and oppose, even if the facts are clear and evident. He starts contradicting and protesting, even if his heart admits the truthfulness of these facts.

He stubbornly sticks to the path of deviation which reflects his drives and wishes, even if the straight path is quite visible to him and promises him salvation. He looks for the unlawful and is inclined towards the abnormal, even if he has discovered the lawful and the normal course.

Such people are described by the Qur'an:

أَلَمْ يَرَوْا أَنَّهُ لَا يُكَلِّمُهُمْ وَلَا يَهْدِيهِمْ سَبِيلًا ۚ اتَّخَذُوهُ

“...and if they see the way of righteousness, they do not take it for (their) way, and if they see the way of error, they take it for (their) way...” (Surah Al-A'raf, 7: 148).

These characteristics are true today of the individual living under the contemporary materialistic cultures of present-day ignorance, as they were true of the individual of the ancient nations of the past era of ignorance.

The modern individual finds before him the path of marriage as a lawful way of satisfying his sexual urge, nevertheless he criticizes such legal ways, tries to ridicule, and belittle them, then turns to

abnormal practices, drowning in the dirty depths of vice which destroy him both spiritually and physically. Driven by these psychologically ill factors the enemies of Islam, the orientalist, the evangelist, the nihilist, all waged an unjust offensive battle against Islam to distort its laws and regulations, and vainly tried to disprove them, in order to deceive mankind and prevent it from obtaining a sound and scientific vision of Islam.

Therefore, by sincerely analysing and studying Islam, we find it a religion in full harmony with the nature, life and man's social conditions and circumstances. It efficiently handles diverse problems and conjectures of the marital and sexual relations between man and woman inside a family and a society. It fights abnormality, deviation, and deprivation. It presents a perfect and flawless system protecting man and woman against resorting to deviation and abnormality.

For example, research discloses that women are more in number than men, as a result of wars and human conflicts – as happened during the two world wars –leaving untold number of women, far exceeding the proportion of men. In some instances, women may be barren and incapable of giving birth. In others, wives may be inflicted with certain diseases preventing the husbands from having normal sexual relations. And in still some other cases women may not be able to sexually satisfy their husbands. All these problems cannot be solved except through polygamy, which would be the correct way to prevent men and women from falling into the slime of adultery and prostitution as a result of suppression and deprivation, and ruin their bodies with diseases, as is the case in non-Islamic societies.

Actually, these societies, which do not accept polygamy, live in a state of nihilism and moral decline, such as the European, American, and Socialist societies, where adultery and prostitution have become a common reality and new and dangerous diseases like Herpes and Aids have cropped up. These societies refused legal polygamy, but took to illegal polygamy, choosing the path of deviation and abnormality to satisfy their whims and desires.

It is clear from our discourses that this great religion, Islam, raises the woman to the highest level, and grants her respect and status in the society in a way never preceded in any civilization ever since the dawn of history to our present era.

It is also obvious that Islam has given its best and keen attention to the proper bringing up of the individual so that he becomes a useful member in a virtuous, harmonious, and happy family – a family that is a strong brick in the construction of the great Islamic society.

Thus, Islam is free from the extremes and excessiveness the characteristics in the Western and Eastern doctrines, whether concerning man–woman rights, or the importance of the individual in the society.

As a matter of fact, Islam clearly displays a complete harmony and a general coordination between the rights and the duties of the individual and the society, as well as a wise and just distribution of the responsibilities and the duties of man and woman.

And Praise Be to Allah, Lord of the Worlds.

- [1.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 502.
- [2.](#) This refers to the period of alimony for the divorced wife who, if pregnant, is to be provided for till she gives birth to the child.
- [3.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 122.
- [4.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 122.
- [5.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 10.
- [6.](#) Al-Kulayni, "Furu' Al-Kafi", Vol. 5 p. 50, ed.3.
- [7.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p. 93.
- [8.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 93.
- [9.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 76.
- [10.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 183.
- [11.](#) means voluntary fasting, so that it may not prevent him from enjoying himself with her.
- [12.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 112.
- [13.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 23.
- [14.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 123. This decision about which one of the couple may undertake the domestic work is not an obligation, but a sort of guidance.
- [15.](#) Al-Hurr Al- 'Amili, "Wasa'il Al-Shia" Vol 7. p 17.
- [16.](#) That is, to make love.
- [17.](#) Al -Kulayni, "Furu ' Al – Kafi," Vol. 5 pp. 508&509.
- [18.](#) Al-Kulayni, "Al-Kafi," Vol.6., p. 49.
- [19.](#) Al-Kulayni, "Al-Kafi," Vol.6., p. 49.
- [20.](#) Al-Kulayni, "Al-Kafi," Vol.6., p. 50.
- [21.](#) Al-Kulayni, "Al-Kafi," Vol.6., p. 48.
- [22.](#) Al-Kulayni, "Al-Kafi," Vol 2., p. 159.
- [23.](#) "Nahjul Balagha," Letter No.31.
- [24.](#) Al-Kulayni, "Al-Kafi," Vol 2., p. 348.
- [25.](#) Al-Kulayni, "Al-Kafi," Vol 2., p. 348.
- [26.](#) Al-Kulayni, "Al-Kafi," Vol 2., p163
- [27.](#) That is, she may neither be a wife receiving her due rights, nor a divorced having no husband.

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